

Disclosure Statement – Off the Plan Contracts

This is the approved form for the purposes of s66ZM of the Conveyancing Act 1919.

VENDOR	WL KENSINGTON PTY LIMITED (ACN 676 809 804)
PROPERTY	28 KENSINGTON RD KENSINGTON NSW 2033

TITLE STRUCTURE	
Will the lot be a lot in a strata scheme?	☒ No ☐ Yes
Will the lot also be subject to a Strata Management Statement or Building Management Statement?	☒ No ☐ Yes
Will the lot form part of a community, precinct or neighbourhood scheme?	☒ No ☐ Yes If Yes, please specify scheme type: Choose an item.

DETAILS					
Completion	Completion Date is 21 days after the day on which the vendor serves OC		Refer to clause(s):	Clauses 48	
Is there a sunset date?	☐ No ☒ Yes	Can this date be extended?	☐ No ☒ Yes	Refer to clause(s):	Clauses 47
Does the purchaser pay anything more if they do not complete on time?	☐ No ☒ Yes	Provide details, including relevant clause(s) of contract:	Interest is payable in accordance with clause 50		
Has development approval been obtained?	☐ No ☒ Yes	Development Approval No:	2024072RCDC		
Has a principal certifying authority been appointed?	☐ No ☒ Yes	Provide details:	JRZ Group		
Can the vendor cancel the contract if an event preventing or enabling the development does or does not occur?	☐ No ☒ Yes	Provide details, including relevant clause(s) of contract:	The vendor may rescind this contract under clause 46 if the Occupation Certificate is not issued on or before the Occupation Date		

ATTACHMENTS (s66ZM(2) of the Conveyancing Act 1919)	
The following prescribed documents are included in this disclosure statement (select all that apply).	
☒ draft plan ☒ s88B instrument proposed to be lodged with draft plan ☒ proposed schedule of finishes ☒ draft strata by-laws	☐ draft community/precinct/neighbourhood/management statement ☐ draft community/precinct/neighbourhood/development contract ☐ draft strata management statement ☐ draft building management statement

☐ draft strata development contract

Contract for the sale and purchase of land 2026 edition

TERM	MEANING OF TERM	NSW DAN:
vendor's agent	Ray White Park Coast East 126 Avoca Street Randwick NSW 2031	Phone: 0412 429 300 Email: justin.bell@raywhite.com Ref: Justin Bell
co-agent vendor	WL KENSINGTON PTY LIMITED (ACN 676 809 804) Level 9 821 Pacific Highway Chatswood NSW 2067	
vendor's solicitor	LWPG & Partners Level 5 115 Pitt Street SYDNEY NSW 2000	LWPG & PARTNERS Phone: 02 8021 6700 Email: bill.lee@lwp.com.au Ref: 241006SAL
date for completion	refer to special condition 48	(clause 15)
land (address, plan details and title reference)	28 KENSINGTON RD KENSINGTON NSW 2033 Lot A in the unregistered plan of subdivision being part 28 KENSINGTON RD KENSINGTON NSW 2033 being part of the land in Certificate of Title Folio Identifier 57/5A/4745	
improvements	☒ VACANT POSSESSION ☐ subject to existing tenancies ☒ HOUSE ☒ garage ☐ carport ☐ home unit ☐ carspace ☐ storage space ☐ none ☐ other:	
attached copies	documents in the List of Documents as marked or numbered: other documents:	

A real estate agent is permitted by legislation to fill up the items in this box in a sale of residential property.

inclusions	☐ air conditioning	☐ curtains	☐ insect screens	☐ range hood
	☐ blinds	☐ dishwasher	☐ internet/TV receiver	☐ solar panels
	☐ built-in wardrobes	☐ EV charger	☐ light fittings	☐ solar power battery
	☐ ceiling fans	☐ fixed floor coverings	☐ pool equipment	☐ stove
	☐ clothes line	☒ other: Schedule of Finishes		
	exclusions			
purchaser				
purchaser's solicitor				
Phone:				
Email:				
Ref:				
price	\$			
deposit	\$	(10% of the price, unless otherwise stated)		
balance	\$			
contract date (if not stated, the date this contract was made)				

Where there is more than one purchaser ☐ JOINT TENANTS
☐ tenants in common ☐ in unequal shares, specify: _____

GST AMOUNT (optional) The price includes GST of: \$

buyer's agent

Note: Clause 20.15 provides "Where this contract provides for choices, a choice in BLOCK CAPITALS applies unless a different choice is marked."

SIGNING PAGE

VENDOR	PURCHASER												
Signed by _____ Vendor DUO LI _____ Vendor	Signed by _____ Purchaser _____ Purchaser												
VENDOR (COMPANY)	PURCHASER (COMPANY)												
Signed by WL KENSINGTON PTY LIMITED (ACN 676 809 804) in accordance with s127(1) of the Corporations Act 2001 by the authorised person(s) whose signature(s) appear(s) below: <table border="0"> <tr> <td>_____ Signature of authorised person</td> <td>_____ Signature of authorised person</td> </tr> <tr> <td><u>YISHENG HE</u> Name of authorised person</td> <td><u>CATHERINE WENCHAN WANG</u> Name of authorised person</td> </tr> <tr> <td><u>Director</u> Office held</td> <td><u>Director</u> Office held</td> </tr> </table>	_____ Signature of authorised person	_____ Signature of authorised person	<u>YISHENG HE</u> Name of authorised person	<u>CATHERINE WENCHAN WANG</u> Name of authorised person	<u>Director</u> Office held	<u>Director</u> Office held	Signed by _____ in accordance with s127(1) of the Corporations Act 2001 by the authorised person(s) whose signature(s) appear(s) below: <table border="0"> <tr> <td>_____ Signature of authorised person</td> <td>_____ Signature of authorised person</td> </tr> <tr> <td>_____ Name of authorised person</td> <td>_____ Name of authorised person</td> </tr> <tr> <td>_____ Office held</td> <td>_____ Office held</td> </tr> </table>	_____ Signature of authorised person	_____ Signature of authorised person	_____ Name of authorised person	_____ Name of authorised person	_____ Office held	_____ Office held
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_____ Signature of authorised person	_____ Signature of authorised person												
_____ Name of authorised person	_____ Name of authorised person												
_____ Office held	_____ Office held												

Choices

Vendor agrees to accept a **deposit-bond** ☒ NO ☐ yes

Nominated Electronic Lodgment Network (ELN) (clause 4): PEXA

Manual transaction (clause 30) ☒ NO ☐ yes
(if yes, vendor must provide further details, including any applicable exception, in the space below):

Tax information (the parties promise this is correct as far as each party is aware)

Land tax is adjustable ☐ NO ☒ yes
GST: Taxable supply ☐ NO ☐ yes in full ☒ yes to an extent
 Margin scheme will be used in making the taxable supply ☐ NO ☒ yes

This sale is not a taxable supply because (one or more of the following may apply) the sale is:

- ☐ not made in the course or furtherance of an enterprise that the vendor carries on (section 9-5(b))
- ☐ by a vendor who is neither registered nor required to be registered for GST (section 9-5(d))
- ☐ GST-free because the sale is the supply of a going concern under section 38-325
- ☐ GST-free because the sale is subdivided farm land or farm land supplied for farming under Subdivision 38-O
- ☐ input taxed because the sale is of eligible residential premises (sections 40-65, 40-75(2) and 195-1)

Purchaser must make a **GSTRW payment** (GST residential withholding payment) ☐ NO ☒ yes (if yes, vendor must provide details)

If the details below are not fully completed at the contract date, the vendor must provide all these details in a separate notice at least 7 days before the date for completion.

GSTRW payment (GST residential withholding payment) – details

Frequently the supplier will be the vendor. However, sometimes further information will be required as to which entity is liable for GST, for example, if the supplier is a partnership, a trust, part of a GST group or a participant in a GST joint venture.

Supplier's name: **WL KENSINGTON PTY LIMITED (ACN 676 809 804)**

Supplier's ABN: **64 676 809 804**

Supplier's GST branch number (if applicable): **Not Applicable**

Supplier's business address: **Level 9 821 Pacific Highway Chatswood NSW 2067**

Supplier's representative: **Jacky He**

Supplier's contact phone number: **0431 585 521**

Supplier's proportion of **GSTRW payment**: **100%**

If more than one supplier, provide the above details for each supplier.

Amount purchaser must pay – price multiplied by the **GSTRW rate** (residential withholding rate): \$

Amount must be paid: ☒ AT COMPLETION ☐ at another time (specify):

Is any of the consideration not expressed as an amount in money? ☒ NO ☐ yes

If "yes", the GST inclusive market value of the non-monetary consideration: \$

Other details (including those required by regulation or the ATO forms):

List of Documents

General ☒ 1 property certificate for the land ☒ 2 plan of the land ☐ 3 unregistered plan of the land ☒ 4 plan of land to be subdivided ☒ 5 document to be lodged with a relevant plan ☒ 6 section 10.7(2) planning certificate under Environmental Planning and Assessment Act 1979 ☐ 7 additional information included in that certificate under section 10.7(5) ☒ 8 sewerage infrastructure location diagram (service location print) ☒ 9 sewer lines location diagram (sewer service diagram) ☐ 10 document that created or may have created an easement, profit à prendre, restriction on use or positive covenant disclosed in this contract ☐ 11 <i>planning agreement</i> ☐ 12 section 88G certificate (positive covenant) ☐ 13 survey report ☐ 14 building information certificate or building certificate given under <i>legislation</i> ☐ 15 occupation certificate ☐ 16 lease (with every relevant memorandum or variation) ☐ 17 other document relevant to tenancies ☐ 18 licence benefiting the land ☐ 19 old system document ☐ 20 Crown purchase statement of account ☐ 21 building management statement ☐ 22 form of requisitions ☐ 23 <i>clearance certificate</i> ☐ 24 land tax certificate Home Building Act 1989 ☐ 25 insurance certificate ☐ 26 brochure or warning ☐ 27 evidence of alternative indemnity cover Swimming Pools Act 1992 ☐ 28 certificate of compliance ☐ 29 evidence of registration ☐ 30 relevant occupation certificate ☐ 31 certificate of non-compliance ☐ 32 detailed reasons of non-compliance	Strata or community title (clause 23 of the contract) ☐ 33 property certificate for strata common property ☐ 34 plan creating strata common property ☐ 35 strata by-laws ☐ 36 strata development contract ☐ 37 strata management statement ☐ 38 strata renewal proposal ☐ 39 strata renewal plan ☐ 40 leasehold strata - lease of lot and common property ☐ 41 property certificate for neighbourhood property ☐ 42 plan creating neighbourhood property ☐ 43 neighbourhood development contract ☐ 44 neighbourhood management statement ☐ 45 property certificate for precinct property ☐ 46 plan creating precinct property ☐ 47 precinct development contract ☐ 48 precinct management statement ☐ 49 property certificate for community property ☐ 50 plan creating community property ☐ 51 community development contract ☐ 52 community management statement ☐ 53 document disclosing a change of by-laws ☐ 54 document disclosing a change in a development contract or management statement ☐ 55 document disclosing a change in boundaries ☐ 56 information certificate (strata) ☐ 57 information certificate (association) ☐ 58 document relevant to an exclusive supply network ☐ 59 disclosure statement - off the plan contract ☐ 60 other document relevant to off the plan contract Other ☐ 61
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HOLDER OF STRATA OR COMMUNITY SCHEME RECORDS – Name, address, email address and telephone number

Signing pages and consents under Electronic Transactions Act 2000

Each party consents to this contract being signed by any other party in accordance with an electronic communication method that is approved by the vendor.

SIGNED BY THE PURCHASER

Purchaser

The purchaser acknowledges that, before signing this contract, it reviewed and confirmed the contract terms. It also ensured, or required it be ensured, that the viewing resolution of the device on which the purchaser read this contract was adjusted to enable all words in the prescribed notices of the Printed Conditions to be displayed in at least 14 point font.

SIGNED, SEALED AND DELIVERED by
the **Purchaser**

In the presence of the **Witness**:

Signature of **Purchaser**

Signature of **Witness**:

Name of **Purchaser**

Name and Address of Witness:

SIGNED, SEALED AND DELIVERED by
the **Purchaser**

In the presence of the **Witness**:

Signature of **Purchaser**

Signature of **Witness**:

Name of **Purchaser**

Name and Address of Witness:

SIGNED BY THE VENDOR

Vendor

EXECUTED by **WL KENSINGTON** }
PTY LIMITED (ACN 676 809 804) in }
accordance with Section 127 of the }
Corporations Act 2001, as the }
VENDOR: }
 }
 }
 }

Signature of Director }
YISHENG HE }
Name of Director }

Signature of Director
CATHERINE WENCHAN WANG
Name of Director

IMPORTANT NOTICE TO VENDORS AND PURCHASERS

Before signing this contract you should ensure that you understand your rights and obligations, some of which are not written in this contract but are implied by law.

WARNING—SMOKE ALARMS

The owners of certain types of buildings and strata lots must have smoke alarms, or in certain cases heat alarms, installed in the building or lot in accordance with regulations under the *Environmental Planning and Assessment Act 1979*. It is an offence not to comply. It is also an offence to remove or interfere with a smoke alarm or heat alarm. Penalties apply.

WARNING—LOOSE-FILL ASBESTOS INSULATION

Before purchasing land that includes residential premises, within the meaning of the *Home Building Act 1989*, Part 8, Division 1A, built before 1985, a purchaser is strongly advised to consider the possibility that the premises may contain loose-fill asbestos insulation, within the meaning of the *Home Building Act 1989*, Part 8, Division 1A. In particular, a purchaser should—

- (a) search the Register required to be maintained under the *Home Building Act 1989*, Part 8, Division 1A, and
- (b) ask the relevant local council whether it holds records showing that the residential premises contain loose-fill asbestos insulation.

For further information about loose-fill asbestos insulation, including areas in which residential premises have been identified as containing loose-fill asbestos insulation, contact NSW Fair Trading.

Cooling off period (purchaser's rights)

- 1** This is the statement required by the *Conveyancing Act 1919*, section 66X. This statement applies to a contract for the sale of residential property.
- 2** **EXCEPT** in the circumstances listed in paragraph 3, the purchaser may rescind the contract before 5pm on—
 - (a) for an off the plan contract—the tenth business day after the day on which the contract was made, or
 - (b) in any other case—the fifth business day after the day on which the contract was made.
- 3** There is **NO COOLING OFF PERIOD**—
 - (a) if, at or before the time the contract is made, the purchaser gives to the vendor, or the vendor's solicitor or agent, a certificate that complies with the Act, section 66W, or
 - (b) if the property is sold by public auction, or
 - (c) if the contract is made on the same day as the property was offered for sale by public auction but passed in, or
 - (d) if the contract is made in consequence of the exercise of an option, other than an option that is void under the Act, section 66ZG.
- 4** A purchaser exercising the right to cool off by rescinding the contract forfeits 0.25% of the purchase price of the property to the vendor.
- 5** The vendor is entitled to recover the forfeited amount from an amount paid by the purchaser as a deposit under the contract. The purchaser is entitled to a refund of any balance.

DISPUTES

If you get into a dispute with the other party, the Law Society and Real Estate Institute encourage you to use informal procedures to resolve the dispute such as negotiation, independent expert appraisal, the Law Society Conveyancing Dispute Resolution Scheme or mediation (for example mediation under the Law Society Mediation Program).

AUCTIONS

Regulations made under the Property and Stock Agents Act 2002 prescribe a number of conditions applying to sales by auction.

WARNINGS

1. Various Acts of Parliament and other matters can affect the rights of the parties to this contract. Some important matters are actions, claims, decisions, licences, notices, orders, proposals or rights of way involving:

Australian Taxation Office County Council Department of Education Department of Planning, Housing and Infrastructure Department of Primary Industries and Regional Development Electricity, gas and telecommunications Homes NSW	Local Council Local Land Services NSW Fair Trading NSW Public Works Owner of adjoining land Privacy Subsidence Advisory NSW Transport agencies Water, sewerage or drainage authority
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If you think that any of these matters affects the property, tell your solicitor.
2. A lease may be affected by the Agricultural Tenancies Act 1990, the Residential Tenancies Act 2010 or the Retail Leases Act 1994.
3. If any purchase money is owing to the Crown, it will become payable before obtaining consent, or if no consent is needed, when the transfer is registered.
4. If a consent to transfer is required under legislation, see clause 27 as to the obligations of the parties.
5. The vendor should continue the vendor's insurance until completion. If the vendor wants to give the purchaser possession before completion, the vendor should first ask the insurer to confirm this will not affect the insurance.
6. Most purchasers will have to pay transfer duty (and, sometimes, if the purchaser is not an Australian citizen, surcharge purchaser duty) on this contract. If a payment is not made on time, interest and penalties may be incurred. More information is available from Revenue NSW.
7. If the purchaser agrees to the release of deposit, the purchaser's right to recover the deposit may stand behind the rights of others (for example the vendor's mortgagee).
8. The purchaser should arrange insurance as appropriate.
9. Some transactions involving personal property may be affected by the Personal Property Securities Act 2009.
10. A purchaser should be satisfied that finance will be available at the time of completing the purchase.
11. The purchaser may have to comply with a foreign resident capital gains withholding payment obligation (even if the vendor is not a foreign resident). If so, this will affect the amount available to the vendor on completion.
12. Purchasers of some residential properties may have to withhold part of the purchase price to be credited towards the GST liability of the vendor. If so, this will also affect the amount available to the vendor. More information is available from the Australian Taxation Office.
13. From 1 July 2026, estate agents, solicitors, licensed conveyancers and other professions who provide a designated service will have regulatory obligations under the Anti-Money Laundering and Counter-Terrorism Financing (AML/CTF) regime. These new obligations include customer due diligence and reporting to AUSTRAC. More details are available from AUSTRAC.

The vendor sells and the purchaser buys the *property* for the price under these provisions instead of Schedule 3 Conveyancing Act 1919, subject to any *legislation* that cannot be excluded.

1 Definitions (a term in italics is a defined term)

1.1 In this contract, these terms (in any form) mean –

<i>adjustment date</i>	the earlier of the giving of possession to the purchaser or completion;
<i>adjustment figures</i>	details of the adjustments to be made to the price under clause 14;
<i>authorised Subscriber</i>	a <i>Subscriber</i> (not being a <i>party's solicitor</i>) named in a notice <i>served</i> by a <i>party</i> as being authorised for the purposes of clause 20.6.8;
<i>bank</i>	the Reserve Bank of Australia or an authorised deposit-taking institution which is a bank, a building society or a credit union;
<i>business day</i>	any day except a bank or public holiday throughout NSW or a Saturday or Sunday;
<i>cheque</i>	a cheque that is not postdated or stale;
<i>clearance certificate</i>	a certificate within the meaning of s14-220 of Schedule 1 to the <i>TA Act</i> , that covers one or more days falling within the period from and including the contract date to completion;
<i>completion time</i>	the time of day at which completion is to occur;
<i>deposit-bond</i>	a deposit bond or guarantee with each of the following approved by the vendor – • the issuer; • the expiry date (if any); and • the amount;
<i>depositholder</i>	vendor's agent (or if no vendor's agent is named in this contract, the vendor's <i>solicitor</i> , or if no vendor's <i>solicitor</i> is named in this contract, the buyer's agent);
<i>discharging mortgagee</i>	any discharging mortgagee, chargee, covenant chargee or caveator whose provision of a <i>Digitally Signed</i> discharge of mortgage, discharge of charge or withdrawal of caveat is required in order for unencumbered title to the <i>property</i> to be transferred to the purchaser;
<i>document of title</i>	document relevant to the title or the passing of title;
<i>ECNL</i>	the Electronic Conveyancing National Law (NSW);
<i>electronic document</i>	a dealing as defined in the Real Property Act 1900 which may be created and <i>Digitally Signed</i> in an <i>Electronic Workspace</i> ;
<i>electronic transaction</i>	a <i>Conveyancing Transaction</i> to be conducted for the <i>parties</i> by their legal representatives as <i>Subscribers</i> using an <i>ELN</i> and in accordance with the <i>ECNL</i> and the <i>participation rules</i> ;
<i>electronic transfer</i>	a transfer of land under the Real Property Act 1900 for the <i>property</i> to be prepared and <i>Digitally Signed</i> in the <i>Electronic Workspace</i> established for the purposes of the <i>parties' Conveyancing Transaction</i> ;
<i>FRCGW percentage</i>	the percentage mentioned in s14-200(3)(a) of Schedule 1 to the <i>TA Act</i> (15% as at 1 January 2025);
<i>FRCGW remittance</i>	a remittance which the purchaser must make under s14-200 of Schedule 1 to the <i>TA Act</i> , being the lesser of the <i>FRCGW percentage</i> of the price (inclusive of GST, if any) and the amount specified in a <i>variation served</i> by a <i>party</i> ;
<i>GST Act</i>	A New Tax System (Goods and Services Tax) Act 1999;
<i>GST rate</i>	the rate mentioned in s4 of A New Tax System (Goods and Services Tax Imposition - General) Act 1999 (10% as at 1 July 2000);
<i>GSTRW payment</i>	a payment which the purchaser must make under s14-250 of Schedule 1 to the <i>TA Act</i> (the price multiplied by the <i>GSTRW rate</i>);
<i>GSTRW rate</i>	the rate determined under ss14-250(6), (8) or (9) of Schedule 1 to the <i>TA Act</i> (as at 1 July 2018, usually 7% of the price if the margin scheme applies, 1/11 th if not);
<i>incoming mortgagee</i>	any mortgagee who is to provide finance to the purchaser on the security of the <i>property</i> and to enable the purchaser to pay the whole or part of the price;
<i>legislation</i>	an Act or a by-law, ordinance, regulation or rule made under an Act;
<i>manual transaction</i>	a <i>Conveyancing Transaction</i> in which a dealing forming part of the <i>Lodgment Case</i> at or following completion cannot be <i>Digitally Signed</i> ;
<i>normally</i>	subject to any other provision of this contract;
<i>participation rules</i>	the participation rules as determined by the <i>ECNL</i> ;
<i>party</i>	each of the vendor and the purchaser;
<i>property</i>	the land, the improvements, all fixtures and the inclusions, but not the exclusions;
<i>planning agreement</i>	a valid voluntary agreement within the meaning of s7.4 of the Environmental Planning and Assessment Act 1979 entered into in relation to the <i>property</i> ;
<i>populate</i>	to complete data fields in the <i>Electronic Workspace</i> ;

<i>requisition</i>	an objection, question or requisition (but the term does not include a claim);
<i>rescind</i>	rescind this contract from the beginning;
<i>serve</i>	serve in writing on the other <i>party</i> ;
<i>settlement cheque</i>	an unendorsed <i>cheque</i> made payable to the person to be paid and – • issued by a <i>bank</i> and drawn on itself; or • if authorised in writing by the vendor or the vendor's <i>solicitor</i>, some other <i>cheque</i>;
<i>solicitor</i>	in relation to a <i>party</i> , the <i>party's</i> solicitor or licensed conveyancer named in this contract or in a notice <i>served</i> by the <i>party</i> ;
<i>TA Act</i>	Taxation Administration Act 1953;
<i>terminate</i>	terminate this contract for breach;
<i>title data</i>	the details of the title to the <i>property</i> made available to the <i>Electronic Workspace</i> by the <i>Land Registry</i> ;
<i>variation</i>	a variation made under s14-235 of Schedule 1 to the <i>TA Act</i> ;
<i>within</i>	in relation to a period, at any time before or during the period; and
<i>work order</i>	a valid direction, notice or order that requires work to be done or money to be spent on or in relation to the <i>property</i> or any adjoining footpath or road (but the term does not include a notice under s22E of the Swimming Pools Act 1992 or clause 20 of the Swimming Pools Regulation 2018).

- 1.2 Words and phrases used in this contract (italicised and in Title Case, such as *Conveyancing Transaction*, *Digitally Sign*, *Electronic Workspace*, *ELN*, *ELNO*, *Land Registry*, *Lodgment Case* and *Subscriber*) have the meanings given in the *participation rules*.

2 Deposit and other payments before completion

- 2.1 The purchaser must pay the deposit to the *depositholder* as stakeholder.
- 2.2 *Normally*, the purchaser must pay the deposit on the making of this contract, and this time is essential.
- 2.3 If this contract requires the purchaser to pay any of the deposit by a later time, that time is also essential.
- 2.4 The purchaser can pay any of the deposit by –
- 2.4.1 giving cash (up to \$2,000) to the *depositholder*;
 - 2.4.2 unconditionally giving a *cheque* to the *depositholder* or to the vendor, vendor's agent or vendor's *solicitor* for sending to the *depositholder*; or
 - 2.4.3 electronic funds transfer to the *depositholder's* nominated account and, if requested by the vendor or the *depositholder*, providing evidence of that transfer.
- 2.5 The vendor can *terminate* if –
- 2.5.1 any of the deposit is not paid on time;
 - 2.5.2 a *cheque* for any of the deposit is not honoured on presentation; or
 - 2.5.3 a payment under clause 2.4.3 is not received in the *depositholder's* nominated account by 5.00 pm on the third *business day* after the time for payment.
- This right to *terminate* is lost as soon as the deposit is paid in full.
- 2.6 If the vendor accepts a *deposit-bond* for the deposit, clauses 2.1 to 2.5 do not apply.
- 2.7 If the vendor accepts a *deposit-bond* for part of the deposit, clauses 2.1 to 2.5 apply only to the balance.
- 2.8 If any of the deposit or of the balance of the price is paid before completion to the vendor or as the vendor directs, it is a charge on the land in favour of the purchaser until *termination* by the vendor or completion, subject to any existing right.
- 2.9 If each *party* tells the *depositholder* that the deposit is to be invested, the *depositholder* is to invest the deposit (at the risk of the *party* who becomes entitled to it) with a *bank*, in an interest-bearing account in NSW, payable at call, with interest to be reinvested, and pay the interest to the *parties* equally, after deduction of all proper government taxes and financial institution charges and other charges.

3 Deposit-bond

- 3.1 This clause applies only if the vendor accepts a *deposit-bond* for the deposit (or part of it).
- 3.2 The purchaser must provide the *deposit-bond* to the vendor's *solicitor* (or if no solicitor the *depositholder*) at or before the making of this contract and this time is essential.
- 3.3 If the *deposit-bond* has an expiry date and completion does not occur by the date which is 14 days before the expiry date, the purchaser must *serve* a replacement *deposit-bond* at least 7 days before the expiry date. The time for service is essential.
- 3.4 The vendor must approve a replacement *deposit-bond* if –
- 3.4.1 it is from the same issuer and for the same amount as the earlier *deposit-bond*; and
 - 3.4.2 it has an expiry date at least three months after its date of issue.
- 3.5 A breach of clauses 3.2 or 3.3 entitles the vendor to *terminate*. The right to *terminate* is lost as soon as –
- 3.5.1 the purchaser *serves* a replacement *deposit-bond*; or
 - 3.5.2 the deposit is paid in full under clause 2.
- 3.6 Clauses 3.3 and 3.4 can operate more than once.

- 3.7 If the purchaser *serves* a replacement *deposit-bond*, the vendor must *serve* the earlier *deposit-bond*.
- 3.8 The amount of any *deposit-bond* does not form part of the price for the purposes of clause 16.5.
- 3.9 The vendor must give the purchaser any original *deposit-bond* –
- 3.9.1 on completion; or
- 3.9.2 if this contract is *rescinded*.
- 3.10 If this contract is *terminated* by the vendor –
- 3.10.1 *normally*, the vendor can immediately demand payment from the issuer of the *deposit-bond*; or
- 3.10.2 if the purchaser *serves* prior to *termination* a notice disputing the vendor's right to *terminate*, the vendor must forward any original *deposit-bond* (or its proceeds if called up) to the *depositholder* as stakeholder.
- 3.11 If this contract is *terminated* by the purchaser –
- 3.11.1 *normally*, the vendor must give the purchaser any original *deposit-bond*; or
- 3.11.2 if the vendor *serves* prior to *termination* a notice disputing the purchaser's right to *terminate*, the vendor must forward any original *deposit-bond* (or its proceeds if called up) to the *depositholder* as stakeholder.
- 4 Electronic transaction**
- 4.1 This *Conveyancing Transaction* is to be conducted as an *electronic transaction* unless –
- 4.1.1 the contract says this transaction is a *manual transaction*, giving the reason, or
- 4.1.2 a *party serves* a notice stating why the transaction is a *manual transaction*, in which case the *parties* do not have to complete earlier than 14 days after *service* of the notice, and clause 21.3 does not apply to this provision,
- and in both cases clause 30 applies.
- 4.2 If, because of clause 4.1.2, this *Conveyancing Transaction* is to be conducted as a *manual transaction* –
- 4.2.1 each *party* must –
- bear equally any disbursements or fees; and
 - otherwise bear that *party's* own costs;
- incurred because this *Conveyancing Transaction* was to be conducted as an *electronic transaction*; and
- 4.2.2 if a *party* has paid all of a disbursement or fee which, by reason of this clause, is to be borne equally by the *parties*, that amount must be adjusted under clause 14.
- 4.3 The *parties* must conduct the *electronic transaction* –
- 4.3.1 in accordance with the *participation rules* and the *ECNL*; and
- 4.3.2 using the nominated *ELN*, unless the *parties* otherwise agree. This clause 4.3.2 does not prevent a *party* using an *ELN* which can interoperate with the nominated *ELN*.
- 4.4 A *party* must pay the fees and charges payable by that *party* to the *ELNO* and the *Land Registry*.
- 4.5 *Normally*, the vendor must *within 7 days* of the contract date create and *populate* an *Electronic Workspace* with *title data* and the date for completion, and invite the purchaser to the *Electronic Workspace*.
- 4.6 If the vendor has not created an *Electronic Workspace* in accordance with clause 4.5, the purchaser may create and *populate* an *Electronic Workspace* and, if it does so, the purchaser must invite the vendor to the *Electronic Workspace*.
- 4.7 The *parties* must, as applicable to their role in the *Conveyancing Transaction* and the steps taken under clauses 4.5 or 4.6 –
- 4.7.1 promptly join the *Electronic Workspace* after receipt of an invitation;
- 4.7.2 create and *populate* an *electronic transfer*;
- 4.7.3 invite any *discharging mortgagee* or *incoming mortgagee* to join the *Electronic Workspace*; and
- 4.7.4 *populate* the *Electronic Workspace* with a nominated *completion time*.
- 4.8 If the transferee in the *electronic transfer* is not the purchaser, the purchaser must give the vendor a direction signed by the purchaser personally for that transfer.
- 4.9 The vendor can require the purchaser to include a covenant or easement in the *electronic transfer* only if this contract contains the wording of the proposed covenant or easement, and a description of the land burdened and benefited.
- 4.10 If the purchaser must make a *GSTRW payment* or an *FRCGW remittance*, the purchaser must *populate* the *Electronic Workspace* with the payment details for the *GSTRW payment* or *FRCGW remittance* payable to the Deputy Commissioner of Taxation at least 2 *business days* before the date for completion.
- 4.11 Before completion, the *parties* must ensure that –
- 4.11.1 all *electronic documents* which a *party* must *Digitally Sign* to complete the *electronic transaction* are *populated* and *Digitally Signed*;
- 4.11.2 all certifications required by the *ECNL* are properly given; and
- 4.11.3 they do everything else in the *Electronic Workspace* which that *party* must do to enable the *electronic transaction* to proceed to completion.
- 4.12 If the computer systems of any of the *Land Registry*, the *ELNO*, Revenue NSW or the Reserve Bank of Australia are inoperative for any reason at the *completion time* agreed by the *parties*, a failure to complete this contract for that reason is not a default under this contract on the part of either *party*.

- 4.13 If the computer systems of the *Land Registry* are inoperative for any reason at the *completion time* agreed by the *parties*, and the *parties* choose that financial settlement is to occur despite this, then on financial settlement occurring –
- 4.13.1 all *electronic documents Digitally Signed* by the vendor and any discharge of mortgage, withdrawal of caveat or other *electronic document* forming part of the *Lodgment Case* for the *electronic transaction* are taken to have been unconditionally and irrevocably delivered to the purchaser or the purchaser's mortgagee at the time of financial settlement together with the right to deal with the land; and
- 4.13.2 the vendor is taken to have no legal or equitable interest in the *property*.
- 4.14 If the *parties* do not agree about the delivery before completion of one or more documents or things that cannot be delivered through the *Electronic Workspace*, the *party* required to deliver the documents or things –
- 4.14.1 holds them on completion in escrow for the benefit of; and
- 4.14.2 must immediately after completion deliver the documents or things to, or as directed by; the *party* entitled to them.

5 Requisitions

- 5.1 If a form of *requisitions* is attached to this contract, the purchaser is taken to have made those *requisitions*.
- 5.2 If the purchaser is or becomes entitled to make any other *requisition*, the purchaser can make it only by *serving* it –
- 5.2.1 if it arises out of this contract or it is a general question about the *property* or title - *within* 21 days after the contract date;
- 5.2.2 if it arises out of anything *served* by the vendor - *within* 21 days after the later of the contract date and that *service*; and
- 5.2.3 in any other case - *within* a reasonable time.

6 Error or misdescription

- 6.1 *Normally*, the purchaser can (but only before completion) claim compensation for an error or misdescription in this contract (as to the *property*, the title or anything else and whether substantial or not).
- 6.2 This clause applies even if the purchaser did not take notice of or rely on anything in this contract containing or giving rise to the error or misdescription.
- 6.3 However, this clause does not apply to the extent the purchaser knows the true position.

7 Claims by purchaser

- Normally*, the purchaser can make a claim (including a claim under clause 6) before completion only by *serving* it with a statement of the amount claimed, and if the purchaser makes one or more claims before completion –
- 7.1 the vendor can *rescind* if in the case of claims that are not claims for delay –
- 7.1.1 the total amount claimed exceeds 5% of the price;
- 7.1.2 the vendor *serves* notice of intention to *rescind*; and
- 7.1.3 the purchaser does not *serve* notice waiving the claims *within* 14 days after that *service*; and
- 7.2 if the vendor does not *rescind*, the *parties* must complete and if this contract is completed –
- 7.2.1 the lesser of the total amount claimed and 10% of the price must be paid out of the price to and held by the *depositholder* until the claims are finalised or lapse;
- 7.2.2 the amount held is to be invested in accordance with clause 2.9;
- 7.2.3 the claims must be finalised by an arbitrator appointed by the *parties* or, if an appointment is not made *within* 1 month of completion, by an arbitrator appointed by the President of the Law Society at the request of a *party* (in the latter case the *parties* are bound by the terms of the Conveyancing Arbitration Rules approved by the Law Society as at the date of the appointment);
- 7.2.4 the purchaser is not entitled, in respect of the claims, to more than the total amount claimed and the costs of the purchaser;
- 7.2.5 net interest on the amount held must be paid to the *parties* in the same proportion as the amount held is paid; and
- 7.2.6 if the *parties* do not appoint an arbitrator and neither *party* requests the President to appoint an arbitrator *within* 3 months after completion, the claims lapse and the amount belongs to the vendor.

8 Vendor's rights and obligations

- 8.1 The vendor can *rescind* if –
- 8.1.1 the vendor is, on reasonable grounds, unable or unwilling to comply with a *requisition*;
- 8.1.2 the vendor *serves* a notice of intention to *rescind* that specifies the *requisition* and those grounds; and
- 8.1.3 the purchaser does not *serve* a notice waiving the *requisition* *within* 14 days after that *service*.

- 8.2 If the vendor does not comply with this contract (or a notice under or relating to it) in an essential respect, the purchaser can *terminate* by *serving* a notice. After the *termination* –
- 8.2.1 the purchaser can recover the deposit and any other money paid by the purchaser under this contract;
 - 8.2.2 the purchaser can sue the vendor to recover damages for breach of contract; and
 - 8.2.3 if the purchaser has been in possession a *party* can claim for a reasonable adjustment.

9 Purchaser's default

If the purchaser does not comply with this contract (or a notice under or relating to it) in an essential respect, the vendor can *terminate* by *serving* a notice. After the *termination* the vendor can –

- 9.1 keep or recover the deposit (to a maximum of 10% of the price);
- 9.2 hold any other money paid by the purchaser under this contract as security for anything recoverable under this clause –
 - 9.2.1 for 12 months after the *termination*; or
 - 9.2.2 if the vendor commences proceedings under this clause *within* 12 months, until those proceedings are concluded; and
- 9.3 sue the purchaser either –
 - 9.3.1 where the vendor has resold the *property* under a contract made *within* 12 months after the *termination*, to recover –
 - the deficiency on resale (with credit for any of the deposit kept or recovered and after allowance for any capital gains tax or goods and services tax payable on anything recovered under this clause); and
 - the reasonable costs and expenses arising out of the purchaser's non-compliance with this contract or the notice and of resale and any attempted resale; or
 - 9.3.2 to recover damages for breach of contract.

10 Restrictions on rights of purchaser

- 10.1 The purchaser cannot make a claim or *requisition* or *rescind* or *terminate* in respect of –
 - 10.1.1 the ownership or location of any fence as defined in the Dividing Fences Act 1991;
 - 10.1.2 a service for the *property* being a joint service or passing through another property, or any service for another property passing through the *property* ('service' includes air, communication, drainage, electricity, garbage, gas, oil, radio, sewerage, telephone, television or water service);
 - 10.1.3 a wall being or not being a party wall in any sense of that term or the *property* being affected by an easement for support or not having the benefit of an easement for support;
 - 10.1.4 any change in the *property* due to fair wear and tear before completion;
 - 10.1.5 a promise, representation or statement about this contract, the *property* or the title, not set out or referred to in this contract;
 - 10.1.6 a condition, exception, reservation or restriction in a Crown grant;
 - 10.1.7 the existence of any authority or licence to explore or prospect for gas, minerals or petroleum;
 - 10.1.8 any easement or restriction on use the substance of either of which is disclosed in this contract or any non-compliance with the easement or restriction on use; or
 - 10.1.9 anything the substance of which is disclosed in this contract (except a caveat, charge, mortgage, priority notice or writ).
- 10.2 The purchaser cannot *rescind* or *terminate* only because of a defect in title to or quality of the inclusions.
- 10.3 *Normally*, the purchaser cannot make a claim or *requisition* or *rescind* or *terminate* or require the vendor to change the nature of the title disclosed in this contract (for example, to remove a caution evidencing qualified title, or to lodge a plan of survey as regards limited title).

11 Compliance with work orders

- 11.1 *Normally*, the vendor must by completion comply with a *work order* made on or before the contract date and if this contract is completed the purchaser must comply with any other *work order*.
- 11.2 If the purchaser complies with a *work order*, and this contract is *rescinded* or *terminated*, the vendor must pay the expense of compliance to the purchaser.

12 Certificates and inspections

The vendor must do whatever is reasonably necessary to enable the purchaser, subject to the rights of any tenant –

- 12.1 to have the *property* inspected to obtain any certificate or report reasonably required;
- 12.2 to apply (if necessary in the name of the vendor) for –
 - 12.2.1 any certificate that can be given in respect of the *property* under *legislation*; or
 - 12.2.2 a copy of any approval, certificate, consent, direction, notice or order in respect of the *property* given under *legislation*, even if given after the contract date; and
- 12.3 to make 1 inspection of the *property* in the 3 days before a time appointed for completion.

13 Goods and services tax (GST)

- 13.1 Terms used in this clause which are not defined elsewhere in this contract and have a defined meaning in the *GST Act* have the same meaning in this clause.
- 13.2 *Normally*, if a *party* must pay the price or any other amount to the other *party* under this contract, GST is not to be added to the price or amount.
- 13.3 If under this contract a *party* must make an adjustment or payment for an expense of another party or pay an expense payable by or to a third party (for example, under clauses 14 or 20.7), the *party* must adjust or pay on completion any GST added to or included in the expense, but –
- 13.3.1 the amount of the expense must be reduced to the extent the party receiving the adjustment or payment (or the representative member of a GST group of which that party is a member) is entitled to an input tax credit for the expense; and
- 13.3.2 if the adjustment or payment under this contract is consideration for a taxable supply, an amount for GST must be added at the *GST rate*.
- 13.4 If this contract says this sale is the supply of a going concern –
- 13.4.1 the *parties* agree the supply of the *property* is a supply of a going concern;
- 13.4.2 the vendor must, between the contract date and completion, carry on the enterprise conducted on the land in a proper and business-like way;
- 13.4.3 if the purchaser is not registered by the date for completion, the *parties* must complete and the purchaser must pay on completion, in addition to the price, an amount being the price multiplied by the *GST rate* ("the retention sum"). The retention sum is to be held by the *depositholder* and dealt with as follows –
- if *within* 3 months of completion the purchaser *serves* a letter from the Australian Taxation Office stating the purchaser is registered with a date of effect of registration on or before completion, the *depositholder* is to pay the retention sum to the purchaser; but
 - if the purchaser does not *serve* that letter *within* 3 months of completion, the *depositholder* is to pay the retention sum to the vendor; and
- 13.4.4 if the vendor, despite clause 13.4.1, *serves* a letter from the Australian Taxation Office stating the vendor has to pay GST on the supply, the purchaser must pay to the vendor on demand the amount of GST assessed.
- 13.5 *Normally*, the vendor promises the margin scheme will not apply to the supply of the *property*.
- 13.6 If this contract says the margin scheme is to apply in making the taxable supply, the *parties* agree that the margin scheme is to apply to the sale of the *property*.
- 13.7 If this contract says the sale is not a taxable supply –
- 13.7.1 the purchaser promises that the *property* will not be used and represents that the purchaser does not intend the *property* (or any part of the *property*) to be used in a way that could make the sale a taxable supply to any extent; and
- 13.7.2 the purchaser must pay the vendor on completion in addition to the price an amount calculated by multiplying the price by the *GST rate* if this sale is a taxable supply to any extent because of –
- a breach of clause 13.7.1; or
 - something else known to the purchaser but not the vendor.
- 13.8 If this contract says this sale is a taxable supply in full and does not say the margin scheme applies to the *property*, the vendor must pay the purchaser on completion an amount of one-eleventh of the price if –
- 13.8.1 this sale is not a taxable supply in full; or
- 13.8.2 the margin scheme applies to the *property* (or any part of the *property*).
- 13.9 If this contract says this sale is a taxable supply to an extent –
- 13.9.1 clause 13.7.1 does not apply to any part of the *property* which is identified as being a taxable supply; and
- 13.9.2 the payments mentioned in clauses 13.7 and 13.8 are to be recalculated by multiplying the relevant payment by the proportion of the price which represents the value of that part of the *property* to which the clause applies (the proportion to be expressed as a number between 0 and 1). Any evidence of value must be obtained at the expense of the vendor.
- 13.10 *Normally*, on completion the vendor must give the recipient of the supply a tax invoice for any taxable supply by the vendor by or under this contract.
- 13.11 The vendor does not have to give the purchaser a tax invoice if the margin scheme applies to a taxable supply.
- 13.12 If the vendor is liable for GST on rents or profits due to issuing an invoice or receiving consideration before completion, any adjustment of those amounts must exclude an amount equal to the vendor's GST liability.
- 13.13 If the vendor *serves* details of a *GSTRW payment* which the purchaser must make, the purchaser does not have to complete earlier than 5 *business days* after that *service* and clause 21.3 does not apply to this provision.
- 13.14 If the purchaser must make a *GSTRW payment* the purchaser must, at least 2 *business days* before the date for completion, *serve* evidence of submission of a *GSTRW payment* notification form to the Australian Taxation Office by the purchaser or, if a direction under either clause 4.8 or clause 30.4 has been given, by the transferee named in the transfer the subject of that direction.

14 Adjustments

- 14.1 *Normally*, the vendor is entitled to the rents and profits and will be liable for all rates, water, sewerage and drainage service and usage charges, land tax, levies and all other periodic outgoings up to and including the *adjustment date* after which the purchaser will be entitled and liable.
- 14.2 The *parties* must make any necessary adjustment on completion, and –
- 14.2.1 the purchaser must provide the vendor with *adjustment figures* at least 2 *business days* before the date for completion; and
- 14.2.2 the vendor must confirm the *adjustment figures* at least 1 *business day* before the date for completion.
- 14.3 If an amount that is adjustable under this contract has been reduced under *legislation*, the *parties* must on completion adjust the reduced amount.
- 14.4 The *parties* must not adjust surcharge land tax (as defined in the Land Tax Act 1956) but must adjust any other land tax for the year current at the *adjustment date* –
- 14.4.1 only if land tax has been paid or is payable for the year (whether by the vendor or by a predecessor in title) and this contract says that land tax is adjustable;
- 14.4.2 by adjusting the amount that would have been payable if at the start of the year –
- the person who owned the land owned no other land;
 - the land was not subject to a special trust or owned by a non-concessional company; and
 - if the land (or part of it) had no separate taxable value, by calculating its separate taxable value on a proportional area basis.
- 14.5 The *parties* must not adjust any first home buyer choice property tax.
- 14.6 If any other amount that is adjustable under this contract relates partly to the land and partly to other land, the *parties* must adjust it on a proportional area basis.
- 14.7 If on completion the last bill for a water, sewerage or drainage usage charge is for a period ending before the *adjustment date*, the vendor is liable for an amount calculated by dividing the bill by the number of days in the period then multiplying by the number of unbilled days up to and including the *adjustment date*.
- 14.8 The vendor is liable for any amount recoverable for work started on or before the contract date on the *property* or any adjoining footpath or road.

15 Date for completion

The *parties* must complete by the date for completion and, if they do not, a *party* can serve a notice to complete if that *party* is otherwise entitled to do so.

16 Completion

• Vendor

- 16.1 *Normally*, on completion the vendor must cause the legal title to the *property* (being the estate disclosed in this contract) to pass to the purchaser free of any charge, mortgage or other interest, subject to any necessary registration.
- 16.2 The legal title to the *property* does not pass before completion.
- 16.3 If the vendor gives the purchaser a document (other than the transfer) that needs to be lodged for registration, the vendor must pay the lodgment fee to the purchaser.
- 16.4 If a *party* serves a land tax certificate showing a charge on any of the land, by completion the vendor must do all things and pay all money required so that the charge is no longer effective against the land.

• Purchaser

- 16.5 On completion the purchaser must pay to the vendor –
- 16.5.1 the price less any –
- deposit paid;
 - *FRCGW remittance* payable;
 - *GSTRW payment*; and
 - amount payable by the vendor to the purchaser under this contract; and
- 16.5.2 any other amount payable by the purchaser under this contract.
- 16.6 If any of the deposit is not covered by a *deposit-bond*, at least 1 *business day* before the date for completion the purchaser must give the vendor an order signed by the purchaser authorising the *depositholder* to account to the vendor for the deposit, to be held by the vendor in escrow until completion.
- 16.7 On completion the deposit belongs to the vendor.

17 Possession

- 17.1 *Normally*, the vendor must give the purchaser vacant possession of the *property* on completion.
- 17.2 The vendor does not have to give vacant possession if –
- 17.2.1 this contract says that the sale is subject to existing tenancies; and
- 17.2.2 the contract discloses the provisions of the tenancy (for example, by attaching a copy of the lease and any relevant memorandum or variation).
- 17.3 *Normally*, the purchaser can claim compensation (before or after completion) or *rescind* if any of the land is affected by a protected tenancy (a tenancy affected by Schedule 2, Part 7 of the Residential Tenancies Act 2010).

18 Possession before completion

- 18.1 This clause applies only if the vendor gives the purchaser possession of the *property* before completion.
- 18.2 The purchaser must not before completion –
- 18.2.1 let or part with possession of any of the *property*;
 - 18.2.2 make any change or structural alteration or addition to the *property*; or
 - 18.2.3 contravene any agreement between the *parties* or any direction, document, *legislation*, notice or order affecting the *property*.
- 18.3 The purchaser must until completion –
- 18.3.1 keep the *property* in good condition and repair having regard to its condition at the giving of possession; and
 - 18.3.2 allow the vendor or the vendor's authorised representative to enter and inspect it at all reasonable times.
- 18.4 The risk as to damage to the *property* passes to the purchaser immediately after the purchaser enters into possession.
- 18.5 If the purchaser does not comply with this clause, then without affecting any other right of the vendor –
- 18.5.1 the vendor can before completion, without notice, remedy the non-compliance; and
 - 18.5.2 if the vendor pays the expense of doing this, the purchaser must pay it to the vendor with interest at the rate prescribed under s101 Civil Procedure Act 2005.
- 18.6 If this contract is *rescinded* or *terminated* the purchaser must immediately vacate the *property*.
- 18.7 If the *parties* or their *solicitors* on their behalf do not agree in writing to a fee or rent, none is payable.

19 Rescission of contract

- 19.1 If this contract expressly gives a *party* a right to *rescind*, the *party* can exercise the right –
- 19.1.1 only by *serving* a notice before completion; and
 - 19.1.2 in spite of any making of a claim or *requisition*, any attempt to satisfy a claim or *requisition*, any arbitration, litigation, mediation or negotiation or any giving or taking of possession.
- 19.2 *Normally*, if a *party* exercises a right to *rescind* expressly given by this contract or any *legislation* –
- 19.2.1 the deposit and any other money paid by the purchaser under this contract must be refunded;
 - 19.2.2 a *party* can claim for a reasonable adjustment if the purchaser has been in possession;
 - 19.2.3 a *party* can claim for damages, costs or expenses arising out of a breach of this contract; and
 - 19.2.4 a *party* will not otherwise be liable to pay the other *party* any damages, costs or expenses.

20 Miscellaneous

- 20.1 The *parties* acknowledge that anything stated in this contract to be attached was attached to this contract by the vendor before the purchaser signed it and is part of this contract.
- 20.2 Anything attached to this contract is part of this contract.
- 20.3 An area, bearing or dimension in this contract is only approximate.
- 20.4 If a *party* consists of 2 or more persons, this contract benefits and binds them separately and together.
- 20.5 A *party's solicitor* can receive any amount payable to the *party* under this contract or direct in writing that it is to be paid to another person.
- 20.6 A document under or relating to this contract is –
- 20.6.1 signed by a *party* if it is signed by the *party* or the *party's solicitor* (apart from a direction under clause 4.8 or clause 30.4);
 - 20.6.2 *served* if it is *served* by the *party* or the *party's solicitor*;
 - 20.6.3 *served* if it is *served* on the *party's solicitor*, even if the *party* has died or any of them has died;
 - 20.6.4 *served* if it is *served* in any manner provided in s170 of the Conveyancing Act 1919;
 - 20.6.5 *served* if it is sent by email or fax to the *party's solicitor*, unless in either case it is not received;
 - 20.6.6 *served* on a person if it (or a copy of it) comes into the possession of the person;
 - 20.6.7 *served* at the earliest time it is *served*, if it is *served* more than once; and
 - 20.6.8 *served* if it is provided to or by the *party's solicitor* or an *authorised Subscriber* by means of an *Electronic Workspace* created under clause 4. However, this does not apply to a notice making an obligation essential, or a notice of *rescission* or *termination*.
- 20.7 An obligation to pay an expense of another *party* of doing something is an obligation to pay –
- 20.7.1 if the *party* does the thing personally - the reasonable cost of getting someone else to do it; or
 - 20.7.2 if the *party* pays someone else to do the thing - the amount paid, to the extent it is reasonable.
- 20.8 Rights under clauses 4, 11, 13, 14, 17, 24, 30 and 31 continue after completion, whether or not other rights continue.
- 20.9 The vendor does not promise, represent or state that the purchaser has any cooling off rights.
- 20.10 The vendor does not promise, represent or state that any attached survey report is accurate or current.
- 20.11 A reference to any *legislation* (including any percentage or rate specified in *legislation*) is also a reference to any corresponding later *legislation*.
- 20.12 Each *party* must do whatever is necessary after completion to carry out the *party's* obligations under this contract.
- 20.13 Neither taking possession nor *serving* a transfer of itself implies acceptance of the *property* or the title.

- 20.14 The details and information provided in this contract (for example, on pages 1 - 4) are, to the extent of each *party's* knowledge, true, and are part of this contract.
- 20.15 Where this contract provides for choices, a choice in BLOCK CAPITALS applies unless a different choice is marked.
- 20.16 Each *party* consents to –
- 20.16.1 any *party* signing this contract electronically; and
 - 20.16.2 the making of this contract by the exchange of counterparts delivered by email, or by such other electronic means as may be agreed by the *parties*.
- 20.17 Each *party* agrees that electronic signing by a *party* identifies that *party* and indicates that *party's* intention to be bound by this contract.

21 Time limits in these provisions

- 21.1 If the time for something to be done or to happen is not stated in these provisions, it is a reasonable time.
- 21.2 If there are conflicting times for something to be done or to happen, the latest of those times applies.
- 21.3 The time for one thing to be done or to happen does not extend the time for another thing to be done or to happen.
- 21.4 If the time for something to be done or to happen is the 29th, 30th or 31st day of a month, and the day does not exist, the time is instead the last day of the month.
- 21.5 If the time for something to be done or to happen is a day that is not a *business day*, the time is extended to the next *business day*, except in the case of clauses 2 and 3.2.
- 21.6 *Normally*, the time by which something must be done is fixed but not essential.

22 Foreign Acquisitions and Takeovers Act 1975

- 22.1 The purchaser promises that the Commonwealth Treasurer cannot prohibit and has not prohibited the transfer under the Foreign Acquisitions and Takeovers Act 1975.
- 22.2 This promise is essential and a breach of it entitles the vendor to *terminate*.

23 Strata or community title

• Definitions and modifications

- 23.1 This clause applies only if the land (or part of it) is a lot in a strata, neighbourhood, precinct or community scheme (or on completion is to be a lot in a scheme of that kind).
- 23.2 In this contract –
- 23.2.1 'change', in relation to a scheme, means –
 - a registered or registrable change from by-laws set out in this contract;
 - a change from a development contract or management statement set out in this contract; or
 - a change in the boundaries of common property;
 - 23.2.2 'common property' includes association property for the scheme or any higher scheme;
 - 23.2.3 'contribution' includes an amount payable under a by-law;
 - 23.2.4 'information certificate' includes a certificate under s184 Strata Schemes Management Act 2015 and s174 Community Land Management Act 2021;
 - 23.2.5 'interest notice' includes a strata interest notice under s22 Strata Schemes Management Act 2015 and an association interest notice under s20 Community Land Management Act 2021;
 - 23.2.6 'normal expenses', in relation to an owners corporation for a scheme, means normal operating expenses usually payable from the administrative fund of an owners corporation for a scheme of the same kind;
 - 23.2.7 'owners corporation' means the owners corporation or the association for the scheme or any higher scheme;
 - 23.2.8 'the *property*' includes any interest in common property for the scheme associated with the lot; and
 - 23.2.9 'special expenses', in relation to an owners corporation, means its actual, contingent or expected expenses, except to the extent they are –
 - normal expenses;
 - due to fair wear and tear;
 - disclosed in this contract; or
 - covered by moneys held in the capital works fund.
- 23.3 Clauses 11, 14.8 and 18.4 do not apply to an obligation of the owners corporation, or to property insurable by it.
- 23.4 Clauses 14.4.2 and 14.6 apply but on a unit entitlement basis instead of an area basis.
- ### • Adjustments and liability for expenses
- 23.5 The *parties* must adjust under clause 14.1 –
- 23.5.1 a regular periodic contribution;
 - 23.5.2 a contribution which is not a regular periodic contribution but is disclosed in this contract; and
 - 23.5.3 on a unit entitlement basis, any amount paid by the vendor for a normal expense of the owners corporation to the extent the owners corporation has not paid the amount to the vendor.

- 23.6 If a contribution is not a regular periodic contribution and is not disclosed in this contract –
- 23.6.1 the vendor is liable for it if it was determined on or before the contract date, even if it is payable by instalments; and
- 23.6.2 the purchaser is liable for all contributions determined after the contract date.
- 23.7 The vendor must pay or allow to the purchaser on completion the amount of any unpaid contributions for which the vendor is liable under clause 23.6.1.
- 23.8 *Normally*, the purchaser cannot make a claim or *requisition* or *rescind* or *terminate* in respect of –
- 23.8.1 an existing or future actual, contingent or expected expense of the owners corporation;
- 23.8.2 a proportional unit entitlement of the lot or a relevant lot or former lot, apart from a claim under clause 6; or
- 23.8.3 a past or future change in the scheme or a higher scheme.
- 23.9 However, the purchaser can *rescind* if –
- 23.9.1 the special expenses of the owners corporation at the later of the contract date and the creation of the owners corporation when calculated on a unit entitlement basis (and, if more than one lot or a higher scheme is involved, added together), less any contribution paid by the vendor, are more than 1% of the price;
- 23.9.2 in the case of the lot or a relevant lot or former lot in a higher scheme, a proportional unit entitlement for the lot is disclosed in this contract but the lot has a different proportional unit entitlement at the contract date or at any time before completion;
- 23.9.3 a change before the contract date or before completion in the scheme or a higher scheme materially prejudices the purchaser and is not disclosed in this contract; or
- 23.9.4 a resolution is passed by the owners corporation before the contract date or before completion to give to the owners in the scheme for their consideration a strata renewal plan that has not lapsed at the contract date and there is not attached to this contract a strata renewal proposal or the strata renewal plan.
- **Notices, certificates and inspections**
- 23.10 Before completion, the purchaser must *serve* a copy of an interest notice addressed to the owners corporation and signed by the purchaser.
- 23.11 After completion, the purchaser must insert the date of completion in the interest notice and send it to the owners corporation.
- 23.12 The vendor can complete and send the interest notice as agent for the purchaser.
- 23.13 The vendor must *serve* at least 7 days before the date for completion, an information certificate for the lot, the scheme or any higher scheme which relates to a period in which the date for completion falls.
- 23.14 The purchaser does not have to complete earlier than 7 days after *service* of the information certificate and clause 21.3 does not apply to this provision. On completion the purchaser must pay the vendor the prescribed fee for the information certificate.
- 23.15 The vendor authorises the purchaser to apply for the purchaser's own information certificate.
- 23.16 The vendor authorises the purchaser to apply for and make an inspection of any record or other document in the custody or control of the owners corporation or relating to the scheme or any higher scheme.
- **Meetings of the owners corporation**
- 23.17 If a general meeting of the owners corporation is convened before completion –
- 23.17.1 if the vendor receives notice of it, the vendor must immediately notify the purchaser of it; and
- 23.17.2 after the expiry of any cooling off period, the purchaser can require the vendor to appoint the purchaser (or the purchaser's nominee) to exercise any voting rights of the vendor in respect of the lot at the meeting.

24 Tenancies

- 24.1 If a tenant has not made a payment for a period preceding or current at the *adjustment date* –
- 24.1.1 for the purposes of clause 14.2, the amount is to be treated as if it were paid; and
- 24.1.2 the purchaser assigns the debt to the vendor on completion and will if required give a further assignment at the vendor's expense.
- 24.2 If a tenant has paid in advance of the *adjustment date* any periodic payment in addition to rent, it must be adjusted as if it were rent for the period to which it relates.
- 24.3 If the *property* is to be subject to a tenancy on completion or is subject to a tenancy on completion –
- 24.3.1 the vendor authorises the purchaser to have any accounting records relating to the tenancy inspected and audited and to have any other document relating to the tenancy inspected;
- 24.3.2 the vendor must *serve* any information about the tenancy reasonably requested by the purchaser before or after completion; and
- 24.3.3 *normally*, the purchaser can claim compensation (before or after completion) if –
- a disclosure statement required by the Retail Leases Act 1994 was not given when required;
 - such a statement contained information that was materially false or misleading;
 - a provision of the lease is not enforceable because of a non-disclosure in such a statement; or
 - the lease was entered into in contravention of the Retail Leases Act 1994.

- 24.4 If the *property* is subject to a tenancy on completion –
- 24.4.1 the vendor must allow or transfer –
- any remaining bond money or any other security against the tenant's default (to the extent the security is transferable);
 - any money in a fund established under the lease for a purpose and compensation for any money in the fund or interest earned by the fund that has been applied for any other purpose; and
 - any money paid by the tenant for a purpose that has not been applied for that purpose and compensation for any of the money that has been applied for any other purpose;
- 24.4.2 if the security is not transferable, each *party* must do whatever is reasonably necessary to cause a replacement security to issue for the benefit of the purchaser and the vendor must hold the original security on trust for the benefit of the purchaser until the replacement security issues;
- 24.4.3 the vendor must give to the purchaser –
- at least 2 *business days* before the date for completion, a proper notice of the transfer (an attornment notice) addressed to the tenant, to be held by the purchaser in escrow until completion;
 - any certificate given under the Retail Leases Act 1994 in relation to the tenancy;
 - a copy of any disclosure statement given under the Retail Leases Act 1994;
 - a copy of any document served on the tenant under the lease and written details of its service, if the document concerns the rights of the landlord or the tenant after completion; and
 - any document served by the tenant under the lease and written details of its service, if the document concerns the rights of the landlord or the tenant after completion;
- 24.4.4 the vendor must comply with any obligation to the tenant under the lease, to the extent it is to be complied with by completion; and
- 24.4.5 the purchaser must comply with any obligation to the tenant under the lease, to the extent that the obligation is disclosed in this contract and is to be complied with after completion.
- 25 Qualified title, limited title and old system title**
- 25.1 This clause applies only if the land (or part of it) –
- 25.1.1 is under qualified, limited or old system title; or
- 25.1.2 on completion is to be under one of those titles.
- 25.2 The vendor must *serve* a proper abstract of title *within 7 days* after the contract date.
- 25.3 If an abstract of title or part of an abstract of title is attached to this contract or has been lent by the vendor to the purchaser before the contract date, the abstract or part is *served* on the contract date.
- 25.4 An abstract of title can be or include a list of documents, events and facts arranged (apart from a will or codicil) in date order, if the list in respect of each document –
- 25.4.1 shows its date, general nature, names of parties and any registration number; and
- 25.4.2 has attached a legible photocopy of it or of an official or registration copy of it.
- 25.5 An abstract of title –
- 25.5.1 must start with a good root of title (if the good root of title must be at least 30 years old, this means 30 years old at the contract date);
- 25.5.2 in the case of a leasehold interest, must include an abstract of the lease and any higher lease;
- 25.5.3 *normally*, need not include a Crown grant; and
- 25.5.4 need not include anything evidenced by the Register kept under the Real Property Act 1900.
- 25.6 In the case of land under old system title –
- 25.6.1 in this contract 'transfer' means conveyance;
- 25.6.2 the purchaser does not have to *serve* the transfer until after the vendor has *served* a proper abstract of title; and
- 25.6.3 each vendor must give proper covenants for title as regards that vendor's interest.
- 25.7 In the case of land under limited title but not under qualified title –
- 25.7.1 *normally*, the abstract of title need not include any document which does not show the location, area or dimensions of the land (for example, by including a metes and bounds description or a plan of the land);
- 25.7.2 clause 25.7.1 does not apply to a document which is the good root of title; and
- 25.7.3 the vendor does not have to provide an abstract if this contract contains a delimitation plan (whether in registrable form or not).
- 25.8 On completion the vendor must give the purchaser any *document of title* that relates only to the *property*.
- 25.9 If on completion the vendor has possession or control of a *document of title* that relates also to other property, the vendor must produce it as and where necessary.
- 25.10 The vendor must give a proper covenant to produce where relevant.
- 25.11 The vendor does not have to produce or covenant to produce a document that is not in the possession of the vendor or a mortgagee.
- 25.12 If the vendor is unable to produce an original document in the chain of title, the purchaser will accept a photocopy from the *Land Registry* of the registration copy of that document.

26 Crown purchase money

- 26.1 This clause applies only if purchase money is payable to the Crown, whether or not due for payment.
 26.2 The vendor is liable for the money, except to the extent this contract says the purchaser is liable for it.
 26.3 To the extent the vendor is liable for it, the vendor is liable for any interest until completion.
 26.4 To the extent the purchaser is liable for it, the *parties* must adjust any interest under clause 14.

27 Consent to transfer

- 27.1 This clause applies only if the land (or part of it) cannot be transferred without consent under *legislation* or a *planning agreement*.
 27.2 The purchaser must properly complete and then *serve* the purchaser's part of an application for consent to transfer of the land (or part of it) *within 7 days* after the contract date.
 27.3 The vendor must apply for consent *within 7 days* after *service* of the purchaser's part.
 27.4 If consent is refused, either *party* can *rescind*.
 27.5 If consent is given subject to one or more conditions that will substantially disadvantage a *party*, then that *party* can *rescind within 7 days* after receipt by or *service* upon the *party* of written notice of the conditions.
 27.6 If consent is not given or refused –
 27.6.1 *within 42 days* after the purchaser *serves* the purchaser's part of the application, the purchaser can *rescind*; or
 27.6.2 *within 30 days* after the application is made, either *party* can *rescind*.
 27.7 Each period in clause 27.6 becomes 90 days if the land (or part of it) is –
 27.7.1 under a *planning agreement*; or
 27.7.2 in the Western Division.
 27.8 If the land (or part of it) is described as a lot in an unregistered plan, each time in clause 27.6 becomes the later of the time and 35 days after creation of a separate folio for the lot.
 27.9 The date for completion becomes the later of the date for completion and 14 days after *service* of the notice granting consent to transfer.

28 Unregistered plan

- 28.1 This clause applies only if some of the land is described as a lot in an unregistered plan.
 28.2 The vendor must do whatever is reasonably necessary to have the plan registered *within 6 months* after the contract date, with or without any minor alteration to the plan or any document to be lodged with the plan validly required or made under *legislation*.
 28.3 If the plan is not registered *within* that time and in that manner –
 28.3.1 the purchaser can *rescind*; and
 28.3.2 the vendor can *rescind*, but only if the vendor has complied with clause 28.2 and with any *legislation* governing the rescission.
 28.4 Either *party* can *serve* notice of the registration of the plan and every relevant lot and plan number.
 28.5 The date for completion becomes the later of the date for completion and 21 days after *service* of the notice.
 28.6 Clauses 28.2 and 28.3 apply to another plan that is to be registered before the plan is registered.

29 Conditional contract

- 29.1 This clause applies only if a provision says this contract or completion is conditional on an event, but does not apply to an event to which clause 28 applies.
 29.2 If the time for the event to happen is not stated, the time is 42 days after the contract date.
 29.3 If this contract says the provision is for the benefit of a *party*, then it benefits only that *party*.
 29.4 If anything is necessary to make the event happen, each *party* must do whatever is reasonably necessary to cause the event to happen.
 29.5 A *party* can *rescind* under this clause only if the *party* has substantially complied with clause 29.4.
 29.6 If the event involves an approval and the approval is given subject to a condition that will substantially disadvantage a *party* who has the benefit of the provision, the *party* can *rescind within 7 days* after either *party* *serves* notice of the condition.
 29.7 If the *parties* can lawfully complete without the event happening –
 29.7.1 if the event does not happen *within* the time for it to happen, a *party* who has the benefit of the provision can *rescind within 7 days* after the end of that time;
 29.7.2 if the event involves an approval and an application for the approval is refused, a *party* who has the benefit of the provision can *rescind within 7 days* after either *party* *serves* notice of the refusal; and
 29.7.3 the date for completion becomes the later of the date for completion and 21 days after the earliest of –
 • either *party* *serving* notice of the event happening;
 • every *party* who has the benefit of the provision *serving* notice waiving the provision; or
 • the end of the time for the event to happen.

- 29.8 If the *parties* cannot lawfully complete without the event happening –
- 29.8.1 if the event does not happen *within* the time for it to happen, either *party* can *rescind*;
 - 29.8.2 if the event involves an approval and an application for the approval is refused, either *party* can *rescind*;
 - 29.8.3 the date for completion becomes the later of the date for completion and 21 days after either *party* serves notice of the event happening.
- 29.9 A *party* cannot *rescind* under clauses 29.7 or 29.8 after the event happens.

30 Manual transaction

- 30.1 This clause applies if this transaction is to be conducted as a *manual transaction*.
- **Transfer**
 - 30.2 *Normally*, the purchaser must *serve* the transfer at least 7 days before the date for completion.
 - 30.3 If any information needed for the transfer is not disclosed in this contract, the vendor must *serve* it.
 - 30.4 If the purchaser *serves* a transfer and the transferee is not the purchaser, the purchaser must give the vendor a direction signed by the purchaser personally for that transfer.
 - 30.5 The vendor can require the purchaser to include a covenant or easement in the transfer only if this contract contains the wording of the proposed covenant or easement, and a description of the land burdened and benefited.
 - **Place for completion**
 - 30.6 *Normally*, the *parties* must complete at the completion address, which is –
 - 30.6.1 if a special completion address is stated in this contract - that address; or
 - 30.6.2 if none is stated, but a first mortgagee is disclosed in this contract and the mortgagee would usually discharge the mortgage at a particular place - that place; or
 - 30.6.3 in any other case - the vendor's *solicitor's* address stated in this contract.
 - 30.7 The vendor by reasonable notice can require completion at another place, if it is in NSW, but the vendor must pay the purchaser's additional expenses, including any agency or mortgagee fee.
 - 30.8 If the purchaser requests completion at a place that is not the completion address, and the vendor agrees, the purchaser must pay the vendor's additional expenses, including any agency or mortgagee fee.
 - **Payments on completion**
 - 30.9 On completion the purchaser must pay to the vendor the amounts referred to in clauses 16.5.1 and 16.5.2, by cash (up to \$2,000) or *settlement cheque*.
 - 30.10 *Normally*, the vendor can direct the purchaser to produce a *settlement cheque* on completion to pay an amount adjustable under this contract and if so –
 - 30.10.1 the amount is to be treated as if it were paid; and
 - 30.10.2 the *cheque* must be forwarded to the payee immediately after completion (by the purchaser if the *cheque* relates only to the *property* or by the vendor in any other case).
 - 30.11 If the vendor requires more than 5 *settlement cheques*, the vendor must pay \$10 for each extra *cheque*.
 - 30.12 If the purchaser must make a *GSTRW payment* the purchaser must –
 - 30.12.1 produce on completion a *settlement cheque* for the *GSTRW payment* payable to the Deputy Commissioner of Taxation;
 - 30.12.2 forward the *settlement cheque* to the payee immediately after completion; and
 - 30.12.3 *serve* evidence of receipt of payment of the *GSTRW payment* and a copy of the settlement date confirmation form submitted to the Australian Taxation Office.
 - 30.13 If the purchaser must pay an *FRCGW remittance*, the purchaser must –
 - 30.13.1 produce on completion a *settlement cheque* for the *FRCGW remittance* payable to the Deputy Commissioner of Taxation;
 - 30.13.2 forward the *settlement cheque* to the payee immediately after completion; and
 - 30.13.3 *serve* evidence of receipt of payment of the *FRCGW remittance*.

31 Foreign Resident Capital Gains Withholding

- 31.1 This clause applies only if –
- 31.1.1 the sale is not an excluded transaction within the meaning of s14-215 of Schedule 1 to the *TA Act*; and
 - 31.1.2 a *clearance certificate* in respect of every vendor is not attached to this contract.
- 31.2 If the vendor *serves* any *clearance certificate* or *variation*, the purchaser does not have to complete earlier than 5 *business days* after that *service* and clause 21.3 does not apply to this provision.
- 31.3 The purchaser must at least 2 *business days* before the date for completion, *serve* evidence of submission of a purchaser payment notification to the Australian Taxation Office by the purchaser or, if a direction under either clause 4.8 or clause 30.4 has been given, by the transferee named in the transfer the subject of that direction.
- 31.4 The vendor cannot refuse to complete if the purchaser complies with clause 31.3 and, as applicable, clauses 4.10 or 30.13.
- 31.5 If the vendor *serves* in respect of every vendor either a *clearance certificate* or a *variation* to 0.00 percent, clauses 31.3 and 31.4 do not apply.

32 Residential off the plan contract

- 32.1 This clause applies if this contract is an off the plan contract within the meaning of Division 10 of Part 4 of the Conveyancing Act 1919 (the Division).
- 32.2 No provision of this contract has the effect of excluding, modifying or restricting the operation of the Division.
- 32.3 If the purchaser makes a claim for compensation under the terms prescribed by sections 4 to 6 of Schedule 3 to the Conveyancing (Sale of Land) Regulation 2022 –
- 32.3.1 the purchaser cannot make a claim under this contract about the same subject matter, including a claim under clauses 6 or 7; and
- 32.3.2 the claim for compensation is not a claim under this contract.

LWPG & PARTNERS

Special Conditions

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Special Conditions

Contract for Sale of Land between:

Parties

WL KENSINGTON PTY LIMITED (ACN 676 809 804)

(Vendor)

The Person(s) named as Purchaser on page one of this contract.

33 Amendments to Standard Form

The Standard Form are amended as follows:

- (a) in clause 1 the definition of **deposit-bond** is deleted;
- (b) clause 3 is deleted;
- (c) clause 5 is deleted and replaced with:
'The purchaser is not entitled at any time to make or deliver any requisitions.'
- (d) clause 7.1.1 is deleted and replaced with *'no matter for what amount a claim is made'*;
- (e) clause 7.1.3 is deleted and replaced with:
'The purchaser does not serve notice waiving the claims within seven days after that service';
- (f) in clause 7.2.1 *'10%'* is replaced with *'3%'*;
- (g) in clause 7.2.4 delete the words *'and the costs of the purchaser'*;
- (h) clause 7.2.5 is deleted;
- (i) in clause 8 delete the words *'on reasonable grounds'* in the first line of clause 8.1.1 and delete the words *'and those grounds'* in the first line of clause 8.1.2;
- (j) in clause 10.1 delete line 1 and replace with:
'The purchaser cannot take any Action in respect of:';
- (k) clause 14.4.2 is deleted and replaced with *'by adjusting the amount actually payable by the vendor'*;
- (l) clause 20.6.5 is amended by deleting the words *'unless in either case it is not received'*;
- (m) in clause 21.4 in the second line delete the words *'the month'* and replace with *'that month'*;
- (n) insert new clause 22.3 as follows:
'22.3 The purchaser indemnifies the vendor against any liability, loss or cost arising out of any breach of clause 22.2.'

- (o) clause 24 is deleted;
- (p) clauses 28 and 29 are deleted; and
- (q) clause 31 is deleted and any references to it including:
 - (i) the related definitions of clearance certificate, FRCGW percentage, FRCGW remittance and TA Act in clause 1; and
 - (ii) any references to those terms (specified in clause 33(q)(i)) in the Standard Form.

34 Definitions and interpretation

34.1 Definitions

In this contract, a term has the meaning given to it in the Standard Form, and unless the context otherwise requires:

Accredited Certifier a certifier appointed pursuant to Part 6 of the EPA Act.

Action means making any objection, requisition or claim for compensation, exercising any right to rescind or terminate this contract or seeking to delay Completion.

Bank Guarantee means a bank guarantee:

- (a) that is issued or underwritten by:
 - (i) a bank that carries on business in Australia; or
 - (ii) other institution with a financial strength long term rating of at least A- from Standard & Poor's,
 that is approved by the vendor in its absolute discretion;
- (b) is unconditional and otherwise in a form and on terms acceptable to the vendor in the vendor's absolute discretion;
- (c) for the amount of the deposit (or the relevant part of the deposit);
- (d) with no expiry date (unless the vendor agrees to the bank guarantee containing an expiry date that is no earlier than twelve months after the Occupation Date); and
- (e) is payable on demand by the vendor.

Business Day means a day on which banks are open for business in Sydney, New South Wales but excluding Saturdays, Sundays and public holidays;

Claim means any claim, demand, action, proceeding, judgement, damage, loss, cost, expense or liability however incurred or suffered or made or recovered against any person however arising.

Completion means completion of the sale and purchase of the Property and payment of the balance of the price and any other amount payable by the purchaser to the vendor in accordance with the terms of this contract and '**Complete**' has a corresponding meaning.

Completion Date has the meaning set out in clause 48.

Construction Amendments includes:

- (a) changes to floor area or ceiling heights in the Property;
- (b) changes to enable the property construction of the Property;
- (c) changes to the exterior of the Property;
- (d) changes to the internal layout of the Property; and
- (e) changes to enable the provision of services within the Property.

Conveyancing Act means the *Conveyancing Act 1919* (NSW).

Council means The Randwick Council.

Development means the development of the Property.

Development Activities means:

- (a) any form of demolition work, excavation work, building work or work ancillary to or associated with demolition work or building work on the Site including, without limitation the installation of services and construction of roads, facilities and improvements;
- (b) any form of landscaping work or work ancillary to or associated with landscaping work on the Site;
- (c) any form of work other than the forms of work referred to in paragraphs (a) and (b) of this definition, which is considered necessary or desirable by the vendor or Government Authority;
- (d) the use of any part of the Site in connection with the forms of work referred to in paragraphs (a) to (c) of this definition;
- (e) the subdivision or consolidation of land forming part of the Site and further subdivision of land on the Site (including community title subdivision); and
- (f) the creation and construction of all easements, services and rights of way, and covenants in or over the Site.

EPA Act means the *Environmental Planning and Assessment Act 1979* (NSW).

Expert means a person nominated by the Resolution Institute at the request of either the vendor or the purchaser to resolve a dispute as an expert in accordance with the expert determination rules of the Resolution Institute.

Extended Occupation Date means 30 June 2027 (being 12 months after the Occupation Date).

FIRB Act means the *Foreign Acquisitions & Takeovers Act 1975* (Cth) and any regulations made under that Act.

Floor Plans means the floor plans for the Property, a draft copy of which is attached as Schedule 1.

Government Authority means any governmental, semi-governmental, municipal, statutory, judicial or quasi judicial authority, department, agency, body, entity, organisation, commission or tribunal, including Council.

Guarantee and Indemnity means the guarantee and indemnity in Schedule 4.

Guarantor means the party or parties that give the Guarantee and Indemnity, both jointly and severally.

LRS means NSW Land Registry Services.

Occupation Certificate means an occupation certificate for the Property in accordance with section 6.9 of the EPA Act.

Occupation Date means 30 June 2026.

Property means the lot or lots to be purchased as shown on page one of this contract.

Schedule of Finishes means the schedule of finishes set out in Schedule 2.

Site means the land contained in Certificates of Title Folio Identifiers Lots 57 of Section 5A in Deposited Plan 4745.

Special Fault means a fault(s) or defect(s) in the Property which:

- (a) is structural; or
- (b) because of its nature, requires urgent attention; or
- (c) may cause danger to persons in the Property; or
- (d) makes the Property uninhabitable.

Standard Form means the NSW Law Society and Real Estate Institute of NSW Contract for the sale and purchase of land – 2022 edition, to which these clauses are attached.

Stakeholder means the sales agent as named on the front page.

Vendor's Agent means the agent shown on the front page of this contract.

34.2 Interpretation

- (a) In this contract, headings are inserted for convenience only and do not affect the interpretation of this contract and unless the context otherwise requires:
 - (i) the singular includes the plural and vice versa;
 - (ii) a gender includes all other genders;
 - (iii) if a word or phrase is defined, its other grammatical forms have a corresponding meaning;

- (iv) the meaning of general words is not limited by specific examples introduced by 'includes', 'including', 'for example' or 'such as' or similar expressions;
- (v) a reference to a document or instrument, including this contract, includes all of its clauses, paragraphs, recitals, parts, schedules and annexures and includes the document or instrument as amended, varied, novated, supplemented or replaced from time to time;
- (vi) a reference to a statute, code or other law includes regulations and other instruments under it and consolidations, amendments, re-enactments or replacements of any of them;
- (vii) a reference to a body other than a party to this contract, (including an institute, association or Authority), which ceases to exist or whose powers or functions are transferred to another body is a reference to the body which the parties agree to substitute for the named body or, failing agreement, replaces it or the body having substantially the same objects as the named body;
- (viii) a reference to a party is to a party to this contract and includes the party's successors and permitted transferees and assigns and, if party is an individual, includes executors and personal legal representatives;
- (ix) a reference to a person includes an individual, a partnership, a corporation or other corporate body, a joint venture, a firm, a trust, an association (whether incorporated or not), a government and a government authority or agency;
- (x) 'related' and 'subsidiary', in respect of a corporation, have the same meaning given to each term in the *Corporations Act 2001* (Cth);
- (xi) all monetary amounts are in Australian dollars, unless otherwise stated and a reference to payment means payment in Australian dollars;
- (xii) if the day on or by which something must be done falls on a Saturday, Sunday or bank holiday in New South Wales, that thing must be done on the next Business Day;
- (xiii) a right includes a benefit, remedy, discretion, authority or power;
- (xiv) an obligation includes a warranty or representation and a reference to a failure to observe or perform an obligation includes a breach of a warranty or representation;
- (xv) an agreement, representation or warranty in favour of two or more persons is for the benefit of them jointly and severally;
- (xvi) an agreement, representation or warranty on the part of two or more persons binds them jointly and severally;
- (xvii) if a period of time is specified to start from a certain day or the day of an act or event, the period is to be calculated exclusive of that day;

- (xviii) a reference to a day is a reference to a period of time commencing at midnight and ending 24 hours later;
 - (xix) a reference to any thing (including, without limitation, any amount) is a reference to the whole and each part of it and a reference to a group of persons is a reference to all of them collectively, to any two or more of them collectively and to each of them individually;
 - (xx) a reference to writing includes any mode of representing or reproducing words in tangible and permanently visible form and includes facsimile transmissions;
 - (xxi) a reference to law means common law, principles of equity and laws made by parliament (and laws made by parliament include State, Territory and Commonwealth laws and regulations and other instruments under them and consolidations, amendments, re-enactments or replacements of any of them); and
 - (xxii) a reference to 'contract' means the Standard Form together with these special conditions and all annexures, schedules and attachments.
- (b) If there is any inconsistency between the Standard Form and these special conditions, these special conditions prevail.
 - (c) Despite clause 1, a term that is defined and italicised in the Standard Form has the same meaning in these special conditions even if it is not italicised.
 - (d) No provision of this contract will be construed to the disadvantage of a party merely because that party was responsible for the preparation of this contract or the inclusion of the provision in this contract.

35 Representations, warranties and acknowledgements by purchaser

- (a) The purchaser acknowledges:
 - (i) at the date of this contract not all Development Activities will have been completed;
 - (ii) the Development Activities may result in:
 - (A) noise, dust, vibration and disturbance to the occupiers of the Site;
 - (B) temporary obstruction or interference with services to the Site;
 - (C) access to the Property being temporarily diverted during the course of the Development Activities on the Site; and
 - (D) construction traffic in and around the Site.
 - (iii) the land surrounding or in the vicinity of the Site may be public land and the vendor is not in control of this public land nor is it in control of any changes proposed for any public land;

- (iv) the land surrounding or in the vicinity of the Site is or may be undergoing development and future development; and
 - (v) the vendor may be required to carry out certain works on the land surrounding or in the vicinity of the Site.
- (b) The purchaser represents and warrants that the purchaser will not make any Claim in relation to any development application by the vendor for the Site or any matter disclosed in clause 35(a), or do anything or omit to do anything which may obstruct, delay or prevent the vendor completing the Development Activities or undertaking selling and leasing activities on the Site.
- (c) The purchaser represents and warrants:
 - (i) the purchaser has not relied on or been induced to enter into this contract by any representations or warranties made or conduct engaged in by the vendor, the Vendor's Agent or any other persons on behalf of the vendor about the subject matter of this contract (including but not limited to those concerning the construction, nature or the fitness or suitability for any particular purpose or otherwise of the Property, or about any potential or present financial return or income to be derived from the Property) except those representations and warranties set out in this contract;
 - (ii) the display suite, brochures, marketing materials and computer generated images for the Property, including finishes, fixtures, furniture and other items are for illustrative purposes only and do not necessarily reflect the items to be delivered on Completion;
 - (iii) that the purchaser has relied entirely on its own independent enquiries and investigations relating to and inspection of the Property;
 - (iv) the purchaser has obtained or has been given the opportunity to obtain its own independent professional advice (including but not limited to legal and financial advice) and is satisfied about:
 - (A) the nature of the Property and the purposes for which the Property may be lawfully used;
 - (B) the terms of this contract and the purchaser's rights and obligations under this contract;
 - (C) the purchaser's entitlement (if any) to claim income tax deductions under the *Income Tax Assessment Act 1997* (Cth) for depreciation of any plant or equipment in the Property or in connection with the cost of construction of the Property; and
 - (D) the purchaser's entitlement (if any) to claim an input tax credit pursuant to the GST Act; and
 - (v) that the purchaser has, where applicable, obtained the approval of all relevant Government Authority (including the Foreign Investment Review Board) to enable the purchaser to complete this contract; and
 - (vi) that it has voluntarily entered into this contract.

- (d) The purchaser acknowledges that the vendor has entered into this contract on the basis that the representations and warranties contained in clauses 35(a), 35(b) and 35(c) are true and not misleading.
- (e) The purchaser indemnifies the vendor against any liability or loss arising from and any costs, charges and expenses incurred in connection with:
 - (i) any breach of the purchaser's representations, warranties or acknowledgments in clauses 35(a), 35(b) and 35(c); and
 - (ii) all actions, proceedings and expenses arising out of any such breach including, without limitation, legal costs and expenses on a full indemnity basis or solicitor and own client basis, whichever is the higher.
- (f) The vendor discloses and the purchaser acknowledges that the property is serviced by Sydney Water and:
 - (i) a service location print and sewer service diagram may not be available for the property; and
 - (ii) the vendor cannot and is not required to, attach to this contract a document identifying the location of any water, wastewater or storm water services to and on the property pursuant to schedule 1 of the Conveyancing (Sale of Land) Regulation 2022 (NSW).
- (g) The purchaser cannot make any requisition, objection, claim for compensation or delay completion or rescind or terminate this contract as a result of the disclosure in clause 35(f).

36 Real estate agent

36.1 Warranty

The purchaser represents and warrants that it was not introduced to the vendor or the Property directly or indirectly through or by any person other than the Vendor's Agent.

36.2 Indemnity

The purchaser indemnifies the vendor in respect of any payment, cost or expense arising out of:

- (a) the warranty set out in clause 36.1 being breached; and
- (b) the vendor defending a claim against or becoming liable for the payment of any agent's commission arising from this contract other than to the Vendor's Agent as a result of that breach.

37 Payment and investment of deposit

37.1 Payment of deposit

The deposit payable by the purchaser under this contract is 10% of the price.

37.2 Investment

The parties agree that the deposit is to be invested under clause 2.9.

37.3 Interest on deposit if purchaser defaults

Despite clause 2.9 and clause 9, if the vendor terminates this contract because of the purchaser's default, in addition to any other right of the vendor, the vendor is entitled to keep all of the interest earned on the deposit (less all proper government taxes and financial institution charges).

37.4 Interest on deposit if vendor defaults

- (a) Despite clause 2.9 and clause 9, if the purchaser terminates this contract because of the vendor's default, in addition to any other right of the purchaser, the purchaser is entitled to keep all of the interest earned on the deposit (less all proper government taxes and financial institution charges).
- (b) The purchaser can provide its tax file number to the depositholder within five Business Days of the contract date.

37.5 Entitlement to interest

- (a) Subject to clauses 37.3 and 37.4, the parties direct the depositholder to pay the interest earned on the deposit:
 - (i) if this contract is Completed, equally between the parties; or
 - (ii) if this contract is rescinded (other than as a result of a default on the part of the purchaser), to the purchaser.
- (b) The purchaser acknowledges:
 - (i) no interest is earned while the deposit or any part of it is held in the depositholder's trust account or in the vendor's solicitor's trust account;
 - (ii) it may not take any Action in relation to the bank or return on the invested deposit provided the deposit is invested in accordance with clause 37.2; and
 - (iii) if it refuses or fails to supply its tax file number to the depositholder, then the purchaser may not receive any interest or its full share earned on the deposit.

38 Bank Guarantee

- (a) This clause 38 applies if the vendor accepts a Bank Guarantee in favour of the vendor instead of payment of the deposit under clause 2.1.
- (b) If the vendor terminates this contract or otherwise serves on the purchaser a notice in writing claiming forfeiture of the deposit:

- (i) the vendor or its agents may call for payment from the issuing party under the Bank Guarantee without further notice to the purchaser; and
 - (ii) to the extent that the amount has not already been paid by the issuer of the Bank Guarantee, the purchaser must immediately pay the balance of the deposit (or that part of the deposit that has not been paid) to the depositholder or the vendor.
- (c) If the Bank Guarantee has an expiry date, the purchaser must, if Completion for any reason has not taken place at least six months before the expiry date, deliver to the vendor (not less than 15 Business Days before the Occupation Date) a satisfactory deposit or a replacement Bank Guarantee on the same terms and conditions as the original Bank Guarantee except that the Bank Guarantee must expire at least 12 months after the Occupation Date (or if the Occupation Date has been extended, 12 months after the Extended Occupation Date).
- (d) If at any time the issuer of the Bank Guarantee:
- (i) does not meet the required rating; or
 - (ii) becomes insolvent,
- the purchaser, if called on to do so by the vendor must, within 14 days provide:
- (iii) a replacement bank guarantee on the same terms and conditions as the original bank guarantee; or
 - (iv) cash or an unendorsed bank cheque in favour of the depositholder in the amount of the deposit.
- (e) For the purposes of clause 16.7, the purchaser must pay on Completion the amount of the deposit or that part of the deposit (if part of the deposit was paid in cash or cheque) in the amount of the Bank Guarantee accepted by the vendor.
- (f) The purchaser cannot request that the vendor call upon the Bank Guarantee before Completion to comply with the purchaser's obligations under clause 16.7.
- (g) This clause 38 is an essential term of this contract.

39 Guarantee and indemnity

39.1 Guarantee

If the purchaser:

- (a) is a company;
- (b) is a company trustee of a trust; or
- (c) is an individual trustee of a trust,

then the purchaser must procure that the relevant person specified in clause 39.2 give the Guarantee and Indemnity.

39.2 Persons giving the guarantee

- (a) If the purchaser is a company, the directors of the company.
- (b) If the purchaser is a company and a trustee of a trust, the directors of the company or the adult beneficiaries of the trust.
- (c) If the purchaser is an individual trustee of a trust, the purchaser in its personal capacity and, if required by the vendor, the principal beneficiaries of the trust.

39.3 Assignment on transfer

The purchaser, and the Guarantor (by signing this contract), acknowledges that if the vendor transfers or assigns its interest in this contract, the vendor also assigns or transfers the benefit of the Guarantor's obligations and indemnities under the Guarantee and Indemnity to the transferee or assignee of the vendor.

40 No caveat

- (a) The purchaser must not lodge a caveat for recording on the folio of the register for the Property.
- (b) The purchaser irrevocably appoints the vendor as its attorney to execute a form of withdrawal of caveat where the purchaser is in breach of clause 40(a).

41 Construction of the Property

- (a) Without prejudice to any other express or implied condition of this contract, before Completion the vendor will use its reasonable endeavours to cause the Development to be constructed in a proper and workmanlike manner and generally in accordance with the plans and specifications approved by Council and any Government Authority.
- (b) The purchaser may not take any Action if there is any difference between the Floor Plans, Schedule of Finishes and the Property as actually constructed, including, without limitation, a difference in the lay-out of the interior of the Property.
- (c) The purchaser may not take any Action because:
 - (i) of any variations between the Floor Plans and the Property as actually constructed, if those variations are:
 - (A) required by a Government Authority;
 - (B) required as part of a consent condition issued by Council, by a Government Authority or the LRS;
 - (C) required by good building practice;
 - (D) made because a building material is not available; or
 - (E) required by the Accredited Certifier;

- (ii) of any change between the buildings or other structures shown on the Floor Plans and the buildings and other structures constructed on the Site which do not materially and adversely affect the value of the Property.

42 Finishes and vendor's obligations to repair

- (a) Subject to clause 42(b), before Completion the vendor must:
 - (i) cause the Property to be finished substantially as specified in the Floor Plans; and
 - (ii) cause to be installed in the Property the items substantially as specified in the Schedule of Finishes.
- (b) The vendor reserves the right without being required to give any notice to the purchaser, to change:
 - (i) any finish specified in the Schedule of Finishes to another finish of equivalent or higher quality; and
 - (ii) any item to be installed in the Property specified in the Schedule of Finishes to another item of equivalent or higher quality.
- (c) If there is any disagreement in connection with a finish or any inclusion in the Property or whether a variation is major or minor:
 - (i) the purchaser may not take any Action; and
 - (ii) if the parties are unable to resolve the dispute, either the vendor or the purchaser must within 14 days after Completion refer the disagreement to an Expert for determination.

43 Defects and Special Faults

43.1 Defects

- (a) Before Completion the purchaser may not serve notice on the vendor of any defects or faults in the Property other than Special Faults.
- (b) The purchaser must serve notice of any Special Fault on the vendor immediately after the purchaser becomes aware of that defect or fault. Before Completion the vendor must repair in a proper and workmanlike manner, at the vendor's expense, any Special Fault of which notice has been served by the purchaser before Completion.
- (c) The vendor must repair in a proper and workmanlike manner, at the vendor's expense, within a reasonable time after the applicable notice has been served by the purchaser, any defects or faults in the Property due to faulty materials or workmanship (including Special Faults but excluding normal maintenance, wear and tear and minor shrinkage and minor settlement cracks) which are notified in writing to the vendor within thirteen (13) weeks of the Occupation Certificate being

served on the purchaser. The purchaser may not serve a notice of defects or faults, other than Special Faults, on more than two occasions.

- (d) If the purchaser gives notice of defects or faults including Special Faults under clause 43.1(b) or 43.1(c), either before or after Completion, then the purchaser may give that notice to the vendor or the Vendor's Agent.
- (e) If there is a dispute or difference as to the performance of this clause 43 the purchaser will not be entitled to delay Completion and either party may refer the dispute for determination by an Expert. The Expert will act as an expert and not as an arbitrator and the Expert's decision will be final, conclusive and binding on the parties. The cost of the determination will be borne as the Expert decides and in default of a decision about costs, in equal shares.

43.2 Variations to natural products

The purchaser acknowledges and agrees that some materials used in the Property (such as timber floors, carpets, tiles and stone), may be comprised of natural products or material and as a result:

- (a) these materials may exhibit variations in respect of colour, pattern, grain structure, texture, shade, surface finish, lines or similar;
- (b) these materials may exhibit minor splits, cracks, chips, indentations or blemishes;
- (c) these materials may expand or contract over time when subjected to changes in temperature and humidity; and
- (d) the matters referred to in this clause 43.2 are not considered defects or faults and the purchaser may not make any claim or requisition, delay Completion, rescind or terminate this contract because of the matters referred to in this clause 43.2.

This clause 43.2 does not merge on Completion.

44 Construction Amendments

- (a) At any time prior to Completion, the vendor may give notice of a Construction Amendment which may, in the vendor's opinion, detrimentally affect the Property to an extent which is not minor.
- (b) If there are any Construction Amendments which are not minor and the vendor gives notice under clause 44(a), the purchaser may, within 10 Business Days after the day the notice is given, elect by written notice to the vendor to either:
 - (i) rescind the contract; or
 - (ii) accept the affect of the Construction Amendment on the Property without any right to make a Claim or seek a reduction in the purchase price,and in this respect time is of the essence.
- (c) If the purchaser does not give notice to the vendor in accordance with clause 44(b), the purchaser will be deemed to have accepted the affect of the Construction Amendment on the Property.

- (d) Subject only to the purchaser's right of rescission pursuant to clause 44(b), the purchaser may not make any Claim or requisition, delay completion, rescind or terminate in respect of any Construction Amendments.

45 Inspection of property

- (a) The purchaser may undertake one general inspection of the Property no later than two weeks prior to Completion.
- (b) The purchaser may arrange an inspection of the Property (between 9.00 am to 6.00 pm, Monday to Friday) by contacting the Vendor's Agent within seven days of receiving the Occupation Certificate.

46 Completion subject to Occupation Certificate

- (a) Completion of this contract is subject to and conditional on the vendor receiving the Occupation Certificate before the Occupation Date and the vendor must promptly serve the Occupation Certificate on the purchaser following the issue of the Occupation Certificate.
- (b) Subject to clause 47, if the Occupation Certificate is not issued on or before the Occupation Date, either party may rescind this contract by written notice to the other party and neither will have any claim against the other except for any antecedent breaches.
- (c) Where the purchaser rescinds this contract pursuant to clause 46(b), the purchaser must serve the vendor a valid written notice of rescission not later than five Business Days after the Occupation Date or Extended Occupation Date (if a notice has been served pursuant to clause 47), as the case may be, time of the essence. If the purchaser does not rescind within that time then the right of rescission ends immediately.
- (d) The vendor must use all reasonable endeavours to receive the Occupation Certificate on or before the Occupation Date.
- (e) If the conditions precedent contained in clause 46(a) are satisfied before the service of a written notice referred to in clause 46(c) neither party is entitled to rescind this contract under this clause.
- (f) Subject to clause 47, if the vendor fails to receive the Occupation Certificate by the Occupation Date, then the vendor may rescind only by complying with section 66ZS of the Conveyancing Act.

47 Occupation Date

- (a) Despite any other clause, the vendor may extend the Occupation Date by each day the Development of the Property has been delayed by reason of:
 - (i) inclement weather or conditions resulting from inclement weather;

- (ii) any civil commotion, combination of workmen strikes or lockouts affecting the progress of the Development or affecting the manufacture or supply of materials for the construction of the Property;
 - (iii) loss or damage by fire, fusion, explosion, smoke, flood, earthquake, lightening, storm, tempest, theft, impact by vehicles, sprinkler leakage, environmental hazard, water damage, damage by aircraft or articles dropped from the air, terrorist attack, or any like clause;
 - (iv) bomb scares or other threatened violence;
 - (v) an outbreak of any epidemic, pandemic or disease, including but not limited to any delays arising in connection with any laws, orders, directions, or guidance imposed by any Government Authority, whether Commonwealth, State, Territory or a foreign Government Authority;
 - (vi) vandalism or other damage not caused by the vendor or any licensee, invitee, agent, contractor or employee of the vendor in the ordinary course of the building activities on the land;
 - (vii) any prohibition or embargo imposed by any laws;
 - (viii) injunction or other order or notice of any Government Authority;
 - (ix) industrial disputes;
 - (x) discovery of unforeseen site conditions at the Property;
 - (xi) changes in any legislative requirements or Government Authority requirements;
 - (xii) delay or default by the vendor's builder;
 - (xiii) any matter or thing beyond the control of the vendor including but not limited to a delay in the manufacture, supply or delivery to the vendor or the builder of any building materials, plant or equipment, or a delay experienced by the vendor in dealing with its consultants or a delay in obtaining any necessary consents, certificates, licences from Council or other authority or Government Authority;
 - (xiv) a delay in any consent required for construction of the Development by Council or other Government Authority; or
 - (xv) any other matter, cause or thing beyond the vendor's control.
- (b) A written notice from the vendor in relation to extensions of time under this clause 47 is final, conclusive and binding on the parties in the absence of manifest error. A certificate can be served on more than one occasion.
- (c) Extensions of time under this clause 47 cannot be claimed whereby the Occupation Date is extended beyond the Extended Occupation Date.

48 Completion

- (a) The Completion Date is the date which is the later of:
 - (i) 42 days after the contract date;
 - (ii) 21 days after the vendor serves the purchaser with an Occupation Certificate;
 - and
 - (iii) any other later date that the vendor notifies the purchaser, in the vendor's absolute discretion.

49 Notice to complete

- (a) The parties must complete this contract by the Completion Date at a time nominated by the vendor.
- (b) If completion does not occur in accordance with clause 49(a), a party who is not in default and is ready, willing and able to complete may serve a notice:
 - (i) requiring the other party to complete not later than 14 days from (and including) the date of service of the notice; and
 - (ii) making time of the essence.
- (c) The parties agree that the period of 14 days in clause 49(b)(i) is reasonable and sufficient time to complete this contract.
- (d) The party may:
 - (i) withdraw the notice to complete at any time; and
 - (ii) issue a further notice to complete.
- (e) If the vendor is entitled to serve a notice to complete, the purchaser must pay and agrees to pay \$450 plus GST to cover additional legal costs incurred by the vendor due to the default of the purchaser. The additional costs paid under this clause are to be adjusted on Completion. The parties agree that this is a genuine pre-estimate of the additional costs incurred by the vendor as a consequence of the issuing of such notice.
- (f) If the vendor is required to issue any additional settlement statements for Completion after it has already done so in accordance with clause 30.9.2, the purchaser must pay, and agrees to pay \$250 plus GST for each additional settlement statement to cover additional legal costs incurred by the vendor. The additional costs paid under this clause is to be adjusted on Completion.

50 Interest for late Completion

- (a) Subject to clause 50(b), if this contract is not completed on or before the Completion Date, then on Completion, the purchaser must pay to the vendor interest at the daily rate of 10% per annum on the balance of the price and any other amount payable by the purchaser to the vendor under this contract from (and including) the day immediately after the Completion Date to (and including) the date that the price and all other amounts payable by the purchaser are actually paid to the vendor.
- (b) The purchaser is not required to pay interest under clause 50(a) for any period where the vendor is not ready, willing or able to complete or if the purchaser's failure to complete is caused by the vendor.
- (c) Payment of interest in accordance with this clause 50 is an essential term of this contract.
- (d) The purchaser may not require the vendor to complete this contract unless interest payable under this clause 50 is paid to the vendor on Completion.

51 Selling activities

- (a) The purchaser acknowledges that before and after Completion and until the vendor completes the sale of all lots in the Site, persons authorised by the vendor, may:
 - (i) conduct selling activities in and about the Site;
 - (ii) construct display homes within the Site;
 - (iii) erecting display, for sale or other signs on parts of the Site (but not the Property);
 - (iv) undertaking inspections of the Site with potential buyers; and
 - (v) operate, place and maintain, on or about the Site (but not the Property) sales and marketing offices and other facilities for sales people.
- (b) The purchaser may not take any Action because of anything contained in this clause 51.

52 FIRB Approval

52.1 Purchaser warranty

The purchaser warrants that the provisions of the FIRB Act do not require the purchaser to obtain consent to enter into this contract.

52.2 Indemnity

If there is a breach of warranty contained in clause 52.1, whether intentional or not, the purchaser must indemnify and compensate the vendor for any loss, damage or cost which the vendor incurs as a result of the breach.

52.3 No merger

This clause 52 will not merge on Completion.

53 Death, incapacity, bankruptcy and insolvency

(a) If the purchaser (or if the purchaser consists of two or more persons any of those persons):

- (i) dies; or
- (ii) is so intellectually, physically or psychologically disabled as to be, in the reasonable opinion of the other party, unable to complete this contract on time; or
- (iii) is declared bankrupt or enters into a scheme or arrangement with its creditors, the vendor may rescind by giving written notice to the purchaser's solicitor,

then the vendor may terminate by written notice to the purchaser's solicitor.

(b) If the purchaser (or if the purchaser consists of two or more persons, any of those persons) is a body corporate and:

- (i) an application is made to a court for an order or an order is made that it be wound up;
- (ii) an application is made to a court for an order appointing a liquidator or provisional liquidator in respect of it, or one of them is appointed, whether or not under an order; or
- (iii) a liquidator, provisional liquidator, receiver and manager, administrator or similar person is appointed in respect of it,

then the vendor may terminate by written notice to the purchaser's solicitor.

(c) Despite any other provision in this contract or any principle of law or equity, the purchaser is not entitled to rescind or terminate this contract or take any Action by reason of any of the following facts:

- (i) that the vendor prior to Completion has a liquidator, provisional liquidator, receiver, receiver manager, administrator, voluntary administrator, controller, controlling manager, official manager or similar office of it appointed; or
- (ii) the vendor's mortgagee (if any) exercises any rights under any security or other arrangement between the vendor, the vendor's mortgagee, or anyone else, including without limitation any moratorium or any enforcement action against the vendor or the Property.

(d) If a right to rescind given by clauses in this contract is not exercised within the period specified for its exercise then the right lapses and may not be exercised.

54 Consent to use and disclose Personal Information

54.1 Definitions

In this clause:

- (a) **Personal Information** means information or an opinion (including information or an opinion forming part of a database) collected, held, used or disclosed in connection with this contract whether true or not, and whether recorded in a material form or not, about an individual whose identity is apparent, or can reasonably be ascertained, from the information or opinion.
- (b) **Related Body Corporate** has the meaning it has in the *Corporations Act 2001* (Cth).

54.2 Consent

Each party who is an individual consents to its Personal Information being:

- (a) used by the vendor in connection with the vendor's business, including in connection with:
 - (i) the purchase, development and sale of land;
 - (ii) the proposed sale of an interest in the vendor's business, including the sale of the Site;
 - (iii) raising finance;
 - (iv) internal reporting;
 - (v) reporting to any Related Body Corporate, financier or adviser of the vendor; and
 - (vi) the management of this contract;
- (b) disclosed by the vendor:
 - (i) if required or authorised by law; or
 - (ii) to any one or more of the following:
 - (A) any Related Body Corporate, financier or advisor of the vendor;
 - (B) any person in connection with a proposed sale of an interest in the vendor's business, including the sale of the Site;
 - (C) any agent engaged by the vendor and notified to the purchaser;
 - (D) any contractor or service provider involved in the construction, finishing or management of the Property or the Site; and

any of whom may be located outside Australia; or

- (iii) if the party consents in writing.

55 Purchaser disclosure - related person

55.1 Definition

In this clause 55:

Related Person has the same meaning as it is defined in the *Duties Act 1997* (NSW).

55.2 Related Person

- (a) If the purchaser or a Related Person to the purchaser has previously entered into a contract to purchase a Lot, the purchaser must disclose this fact to the vendor.
- (b) If the purchaser does not make a disclosure under clause 55.2(a), the purchaser represents and warrants that:
 - (i) this is the only contract to purchase a Lot entered into by the purchaser; and
 - (ii) no Related Persons to the purchaser has entered into a contract to purchase a Lot.

56 Foreign resident capital gains withholding tax

56.1 Definitions

In this clause 56:

- (a) **Clearance Certificate** means a certificate in respect of the vendor given by the Commissioner under section 14-220 of Schedule 1 of the TA Act;
- (b) **Commissioner** has the meaning given to that term in the TA Act;
- (c) **Excluded Transaction** means a transaction within the meaning of section 14-215(1) of Schedule 1 of the TA Act;
- (d) **FRCGW Amount** means the amount that the purchaser is required to pay the Commissioner under section 14-200(3) of Schedule 1 of the TA Act; and
- (e) **TA Act** means the *Taxation Administration Act 1953* (Cth).

56.2 Clearance certificate not attached

Where:

- (a) a Clearance Certificate is not attached to this contract; and
- (b) the sale under this contract is not an Excluded Transaction,

the vendor must provide a Clearance Certificate or variation to the purchaser at least three Business Days before Completion.

56.3 FRCGW Amount

- (a) If the vendor is unable to provide a Clearance Certificate or variation in accordance with clause 56.2, then the vendor:
 - (i) irrevocably authorises and directs the purchaser to pay the FRCGW Amount to the Commissioner from the balance of the price payable to the vendor on Completion; and
 - (ii) acknowledges and agrees that the vendor will be not be entitled to delay Completion or refuse to complete.
- (b) If clause 56.3(a) applies, the purchaser must:
 - (i) at Completion, complete and lodge a 'Foreign Resident Capital Gains Withholding Purchaser Notification Form'; and
 - (ii) immediately following Completion, arrange payment of the FRCGW Amount to the Commissioner and send the confirmation of payment of the FRCGW Amount to the vendor.

56.4 No merger

This clause 56 does not merge on Completion.

57 General

57.1 Amendment

This contract may only be amended or varied in writing signed by each party.

57.2 Waiver

- (a) No failure to exercise or delay in exercising any right given by or under this contract to a party constitutes a waiver and the party may still exercise that right in the future.
- (b) Waiver of any provision of this contract or a right created under it must be in writing signed by the party giving the waiver and is only effective to the extent set out in that written waiver.

57.3 Assignment

- (a) The vendor may assign, novate, transfer and/or encumber its rights, obligations and interests in this contract at any time prior to Completion.
- (b) The purchaser must not assign, novate, enter into a contract to on-sell the Property or otherwise encumber its rights under this contract without the prior written consent of the vendor which may be given or declined or given on terms in the vendor's absolute discretion.

57.4 Trusts

Where the purchaser purchases the Property as trustee, the purchaser:

- (a) must not do anything to prejudice any right of indemnity the purchaser has under the trust;
- (b) warrants the purchaser has the power under the trust to enter into this contract;
- (c) is personally liable under this contract;
- (d) warrants the purchaser has a right of indemnity under the trust; and
- (e) must not allow the variation of the trust or the advance or distribution of capital of the trust or the re-settlement of trust property.

57.5 Injunctive relief

Even if damages may be an adequate remedy for a breach by the purchaser of any of the provisions of this contract, the purchaser acknowledges the vendor may seek an injunction from a court to prevent the continuing or further breach of the provisions of this contract.

57.6 Electronic transaction and execution

- (a) For the purposes of the *Electronic Transactions Act 2000* (NSW) and the *Electronic Transactions Act 1999* (Cth), each party consents to the electronic exchange of this contract and any notices to be served or received under this contract.
- (b) In this clause 57.6, **Electronic Signature** means a digital signature or a visual representation of a person's handwritten signature or mark which is placed on a physical or electronic copy of this contract by electronic or mechanical means, and **Electronically Signed** has a corresponding meaning.
- (c) Where this contract is Electronically Signed by or on behalf of a party, the party warrants and agrees that the Electronic Signature has been used to identify the person signing and to indicate that the party intends to be bound by the Electronic Signature.
- (d) This contract may be Electronically Signed in any number of counterparts which together will constitute the one document.
- (e) Each party consents to the exchange of counterparts of this contract by delivery by email or such other electronic means as may be agreed in writing.
- (f) Each party must upon request promptly deliver a physical counterpart of this contract with the handwritten signature or signatures of the party and all written evidence of the authority of a person signing on their behalf, but failure to comply with the request does not affect the validity of this contract.

57.7 No merger

Any provision of this contract which is capable of taking effect after Completion will not merge on Completion but rather will continue in full force and effect.

57.8 Severance

If any clause or part of any clause in this contract is in any way unenforceable, invalid or illegal, it is to be read down so as to be enforceable, valid and legal. If this is not possible, the clause or special condition (or where possible, the offending part) is to be severed from this contract without affecting the enforceability, validity or legality of the remaining clauses (or parts of those clauses) which will remain in full force and effect.

57.9 Further assurance

Each party must do, sign, execute and deliver and must procure that each of its employees and agents does, signs, executes and delivers, all deeds, documents, instruments and acts reasonably required of it or them by notice from the other party to effectively carry out and give full effect to this contract and the rights and obligations of the parties under it, both before and after Completion.

57.10 Power of attorney

Each person who executes this contract (or any document arising in relation to this contract) on behalf of a party under a power of attorney declares that he or she is not aware of any fact or circumstances that might affect his or her authority to do so.

57.11 Entire agreement

This contract constitutes the entire agreement between the parties regarding the matters set out in it and supersedes any prior representations, documents, sales brochures, understandings or arrangements made between the parties, whether orally or in writing.

57.12 Governing Law

- (a) This contract is governed by the law in force in New South Wales.
- (b) Each party irrevocably and unconditionally submits to the non-exclusive jurisdiction of the courts of New South Wales and courts of appeal from them. Each party waives any right to object to an action being brought in those courts including, without limitation, by claiming the action has been brought in an inconvenient forum or that those courts do not have jurisdiction.
- (c) Any document in an action (including, without limitation, any writ of summons or other originating process or any third or other party notice) may be served on any party by being delivered to or left for that party at that party's solicitors address.

57.13 Counterparts

This contract may be executed in any number of counterparts. All counterparts taken together constitute one instrument.

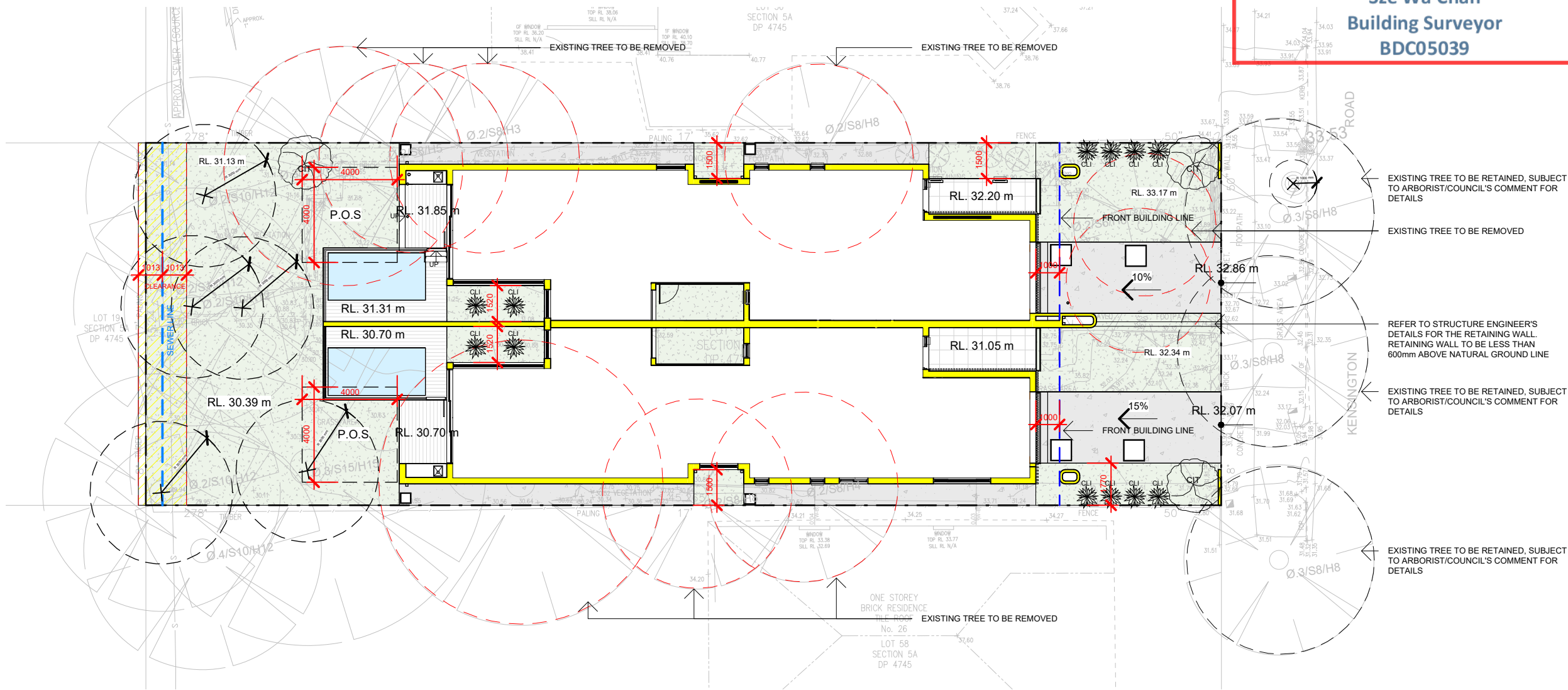
Schedule 1 – Floor Plans

PLANT SCHEDULE				
ID	BOTANICAL NAME	COMMON NAME	NATURAL SIZE (m, height x width)	QTY
CIT lem	CITRUS LEMON	LEMON	8-10 x 5-8m	3
CLI min	CLIVIA MINIATA	CLIVIA MINIATA	0.4-0.7 x 0.3-0.4m	12

Landscape Legend	
	SITE BOUNDARY
EX. RL 18.25	EXISTING SPOT LEVEL
PRO. RL 18.82	PROPOSED SPOT LEVEL
	TURF ON NATURAL GROUND
	PROPOSED CONCRETE PAVING
	PROPOSED OUTDOOR DECKING PAVINGS
	CLIVIA MINIATA
	CITRUS LEMON
NOTES: ALL PLANTS ARE SHOWN DIAGRAMMATICALLY, SPECIFIC QUANTITY OF PLANTS REFERS TO CLIENT'S SPECIFICATION.	

Primal Certifiers
Reference: 2024072RCDC
Date: 02/10/2024

Sze Wa Chan
Building Surveyor
BDC05039



CLI min
CLIVIA MINIATA



CIT lem
CITRUS LEMON



Maintenance / Plant Establishment:			
Maintenance shall apply to all hard and soft landscape materials installed prior to the "handover" and acceptance by Principles Representative and the Site Superintendent. The maintenance period shall convenience at the granting of practical completion and shall extend for 26 weeks. Maintenance shall consist of the following works: - Follow a daily watering program to be approved by Superintendent. Water all plants individually, twice per week or when necessary to ensure constant plant growth. Water all turf and native grassed areas, twice per week. - Apply appropriate weed control sprays and hand weed as required to maintain planting areas, native grassing bed areas, turfed areas, paved areas, and tree pits in turf free of weed or rogue grass growth.			
- Regularly tidy and top up mulch and trim edges to prevent spill over onto paved/grassed areas. - Spray to control pests and diseases. - Replace plants, which fail with plants of a similar size and quality as originally specified to approval of Superintendent. Costs of replacement shall be the responsibility of the Contractor. Replacement planting will be undertaken within 2 weeks of identification of dead material or instruction be the Superintendent. - Report any incidence of plants stolen or destroyed by vandalism. - Adjust stakes and ties to plants as necessary. Ensure that strangulation of plants does not occur. - Prune and shape plants as directed or where necessary. - Make good any defects or faults arising out of defective workmanship or materials.			
- Fertilize lawn areas to maintain healthy growth. - Make good any erosion or soil subsidence, which may occur including soft areas in pathways. - Mow lawn to maintain neat healthy growth. - A final inspection shall be made by the Superintendent before handover. Any items requiring rectification shall be repaired before the works are finally approved, and retention moneys released.			

General Notes:	
-Architectural Drawings To Be Read In Conjunction With All Other Consultants Detailed Drawings And Specifications. -Do Not Scale From Drawings. ALL Dimensions To Be Verified On Site (VOS) Prior To Construction / Manufacture. Contractor to Verify all Levels and Conditions on Site. -All Levels Indicated Taken To Australian Height Datum (AHD) -All Proposed Works To Comply With Requirements Of The Building Code Of Australia (BCA) -Builder To Obtain Relevant Consent From Public Utility Providers Prior to Construction. -Contractor To Ensure Compliance with Requirements of Complying Development Certificate Or Construction Certificate -This drawing shall not be used for construction unless endorsed 'For Construction' and authorised for issue.	

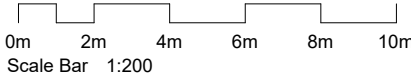
JRZ GROUP
Jerry Wang | NSW Nominated Architect No.11532

E admin@jrzgoup.com.au
P 0435 902 947
A Suite 2, Lv.6, Tower 2, 475 Victoria Ave, Chatswood NSW 2067

Rev.	Description	Date
A	Issue for Preliminary	16/05/2024
B	Issue for CDC	30/08/2024



For Comply Development Certificate Only



DRAWING TITLE	
LANDSCAPE PLAN	
JOB No.	JRZ - 24096
DATE	May 2024
SCALE	A3 @
DWG No.	CDC055 B

Legend - Keynote

Abbrev. Description

Certificate No. 0009733770

Scan QR code or follow website link for rating details.

Assessor name Lance Chen

Accreditation No. DMN/16/1765

Property Address 28 Kensington Road, KENSINGTON NSW 2033

Isstar.com.au/QR/Generate?pr=cdlNMMZ



Primal Certifiers
Reference: 2024072RCDC
Date: 02/10/2024

Sze Wa Chan
Building Surveyor
BDC05039

Wall Type Legend

WT10a-1/10a-2/10b FULL BRICK WALL WITH CAVITY AND INSULATION AS REQUIRED INTERNAL PLASTERBOARD OR TILE FINISH TO SCHEDULE EXTERNAL RENDER & PAINT OR TILE FINISH TO SCHEDULE	WT21a/22a 155mm/200mm DINCEL WALL (CONCRETE) INTERNAL FINISH TO BUILDER/LIFT CONTRACTOR'S DETAILS EXTERNAL FINISH TO BUILDER/LIFT CONTRACTOR'S DETAILS	WT31a/31b 75mm HEBEL CLADDING EXTERANL WALL WITH 92mm STEEL STUD AND CAVITY & INSULATION AS REQUIRED INTERNAL PLASTERBOARD OR TILE FINISH TO SCHEDULE EXTERNAL RENDER & PAINT TO SCHEDULE
WT11a FULL BRICK PARTY WALL WITH CAVITY AND INSULATION AS REQUIRED INTERNAL PLASTERBOARD OR TILE FINISH TO SCHEDULE EXTERNAL RENDER & PAINT FINISH TO SCHEDULE	WT24a 300mm CASTEC CONCRETE WALL INTERNAL PLASTERBOARD OR TILE FINISH TO SCHEDULE EXTERNAL FINISH TO CONTRACTOR'S DETAILS	WT35a 50mm HEBEL CORE INTERTENANCY WALL WITH 92mm STEEL STUD AND CAVITY & INSULATION AS REQUIRED INTERNAL PLASTERBOARD OR TILE FINISH TO SCHEDULE EXTERNAL RENDER & PAINT FINISH TO SCHEDULE
WT18a/18a-1/18a-2/18b/18c SINGLE BRICK WALL INTERNAL PLASTERBOARD OR TILE FINISH TO SCHEDULE EXTERNAL RENDER & PAINT OR TILE FINISH TO SCHEDULE	WT70a GLASS WALL REFER TO BASIX REPORT FOR GLAZING TYPE DETAILS	WT60a/60b/60c 92mm STEEL STUD WALL @450mm CENTRES PLASTERBOARD OR TILE FINISH TO SCHEDULE

- a. DENOTES 'DRY' AREA TO BOTH SIDE OF THE WALL TYPE
b. DENOTES 'DRY' AND 'WET' AREA TO EITHER SIDE OF THE WALL TYPE
c. DENOTES 'WET' AREA TO BOTH SIDE OF THE WALL TYPE
-1. DENOTES TILE FINISH TO EXTERIOR OF THE WALL TYPE
-2. DENOTES RENDER & PAINT FINISH TO EXTERIOR OF THE WALL TYPE

NOTES: All Walls, Slabs And Insulation To Comply With BCA F5.3 And Spec F5.2. ALL MATERIAL TO CONFIRM WITH THE CLIENT

Survey Notes:

This Drawing Is Based On The Survey By:
ISA SURVEYORS Pty Ltd

Reference Date: 26-04-2024
Sheet 1

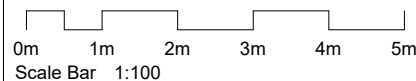
LOT 57 IN SECTION 5A DP 4745
28 KENSINGTON ROAD, KENSINGTON

General Notes:

- Architectural Drawings To Be Read In Conjunction With All Other Consultants Detailed Drawings And Specifications.
- Do Not Scale From Drawings. ALL Dimensions To Be Verified On Site (VOS) Prior To Construction / Manufacture. Contractor To Verify all Levels and Conditions on Site.
- All Levels Indicated Taken To Australian Height Datum (AHD)
- All Proposed Works To Comply With Requirements Of The Building Code Of Australia (BCA)
- Builder To Obtain Relevant Consent From Public Utility Providers Prior To Construction.
- Contractor To Ensure Compliance with Requirements of Complying Development Certificate Or Construction Certificate
- This drawing shall not be used for construction unless endorsed 'For Construction' and authorised for issue.

28 Kensington Road, Kensington NSW 2033; Lot 57 in Section 5A DP4745

For Comply Development Certificate Only



DRAWING TITLE

LOWER GROUND FLOOR PLAN

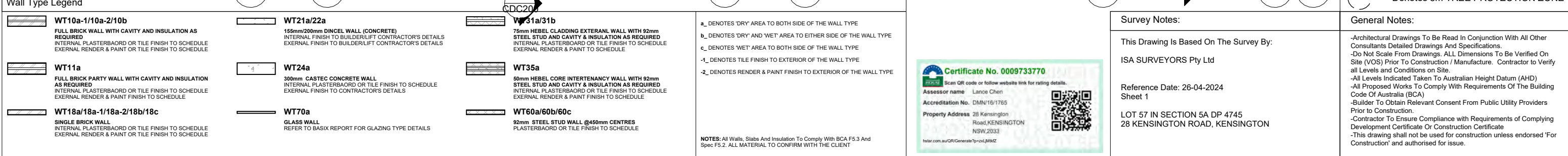
JOB No. JRZ - 24096

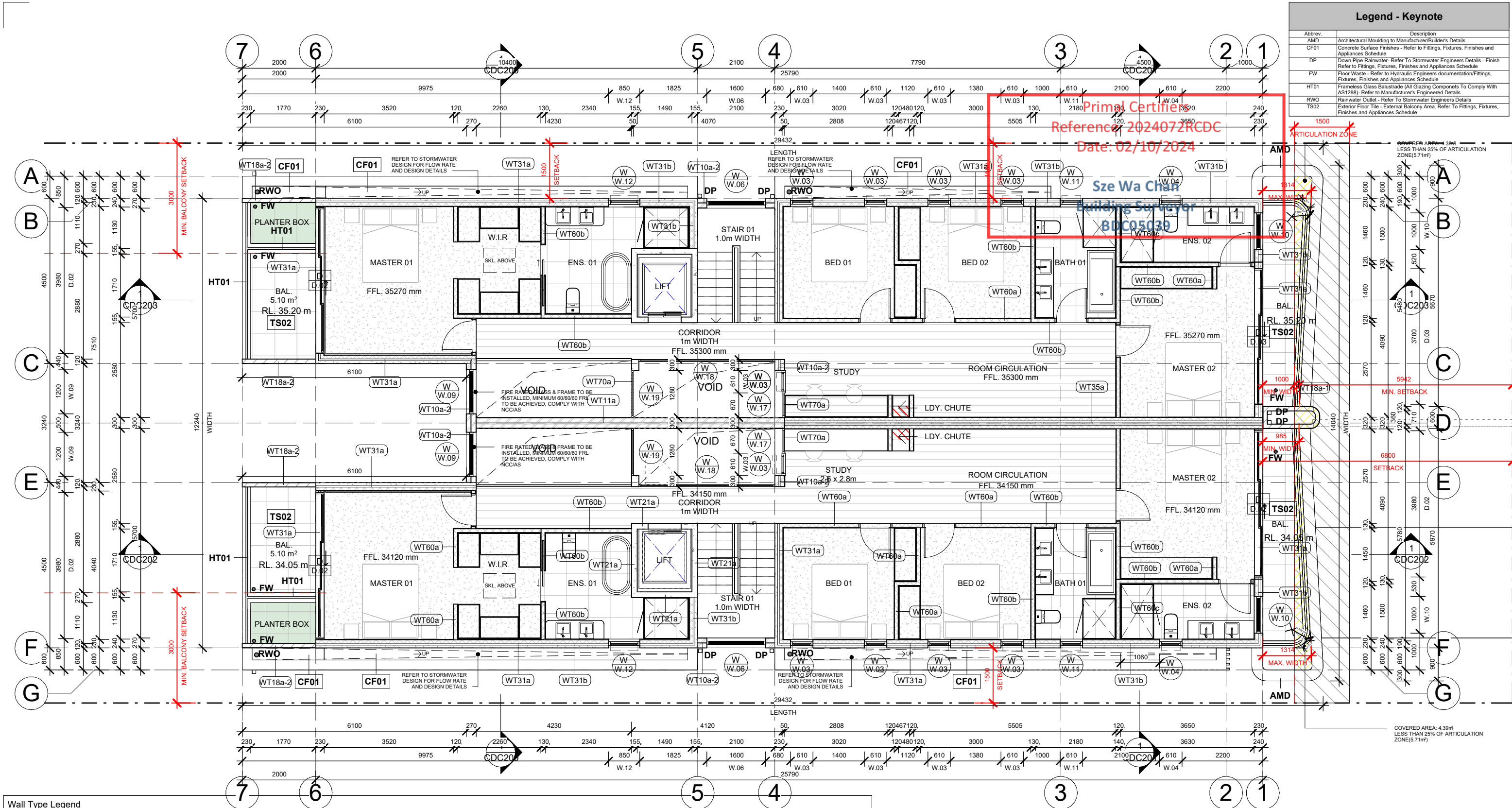
DATE May 2024

SCALE A3 @

DWG No.

CDC100 B





Legend - Keynote	
Abbrev.	Description
AMD	Architectural Moulding to Manufacturer/Builder's Details.
CF01	Concrete Surface Finishes - Refer to Fittings, Fixtures, Finishes and Appliances Schedule
DP	Down Pipe Rainwater - Refer to Stormwater Engineers Details - Finish Refer to Fittings, Fixtures, Finishes and Appliances Schedule
FW	Floor Waste - Refer to Hydraulic Engineers documentation/Fittings, Fixtures, Finishes and Appliances Schedule
HT01	Frameless Glass Balustrade (All Glazing Components To Comply With AS1288) - Refer to Manufacturer's Engineered Details
RWO	Rainwater Outlet - Refer to Stormwater Engineers Details
TS02	Exterior Floor Tile - External Balcony Area. Refer to Fittings, Fixtures, Finishes and Appliances Schedule

Wall Type Legend	
	WT10a-1/10a-2/10b FULL BRICK WALL WITH CAVITY AND INSULATION AS REQUIRED INTERNAL PLASTERBOARD OR TILE FINISH TO SCHEDULE EXTERNAL RENDER & PAINT OR TILE FINISH TO SCHEDULE
	WT11a FULL BRICK PARTY WALL WITH CAVITY AND INSULATION AS REQUIRED INTERNAL PLASTERBOARD OR TILE FINISH TO SCHEDULE EXTERNAL RENDER & PAINT FINISH TO SCHEDULE
	WT18a/18a-1/18a-2/18b/18c SINGLE BRICK WALL INTERNAL PLASTERBOARD OR TILE FINISH TO SCHEDULE EXTERNAL RENDER & PAINT OR TILE FINISH TO SCHEDULE
	WT21a/22a 155mm/200mm DINCEL WALL (CONCRETE) INTERNAL FINISH TO BUILDER/LIFT CONTRACTOR'S DETAILS EXTERNAL FINISH TO BUILDER/LIFT CONTRACTOR'S DETAILS
	WT24a 300mm CASTEC CONCRETE WALL INTERNAL PLASTERBOARD OR TILE FINISH TO SCHEDULE EXTERNAL FINISH TO CONTRACTOR'S DETAILS
	WT70a GLASS WALL REFER TO BASIX REPORT FOR GLAZING TYPE DETAILS
	WT31a/31b 75mm HEBEL CLADDING EXTERANL WALL WITH 92mm STEEL STUD AND CAVITY & INSULATION AS REQUIRED INTERNAL PLASTERBOARD OR TILE FINISH TO SCHEDULE EXTERNAL RENDER & PAINT TO SCHEDULE
	WT35a 50mm HEBEL CORE INTERTENANCY WALL WITH 92mm STEEL STUD AND CAVITY & INSULATION AS REQUIRED INTERNAL PLASTERBOARD OR TILE FINISH TO SCHEDULE EXTERNAL RENDER & PAINT FINISH TO SCHEDULE
	WT60a/60b/60c 92mm STEEL STUD WALL @450mm CENTRES PLASTERBOARD OR TILE FINISH TO SCHEDULE
NOTES: All Walls, Slabs And Insulation To Comply With BCA F5.3 And Spec F5.2. ALL MATERIAL TO CONFIRM WITH THE CLIENT	

General Notes:	
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-All Proposed Works To Comply With Requirements Of The Building Code Of Australia (BCA)	
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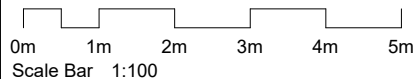
JRZ GROUP
Jerry Wang | NSW Nominated Architect No.11532

E admin@jrzgoup.com.au
P 0435 902 947
A Suite 2, Lv.6, Tower 2, 475 Victoria Ave, Chatswood NSW 2067

Rev.	Description	Date
A	Issue for Preliminary	16/05/2024
B	Issue for CDC	30/08/2024



For Comply Development Certificate Only



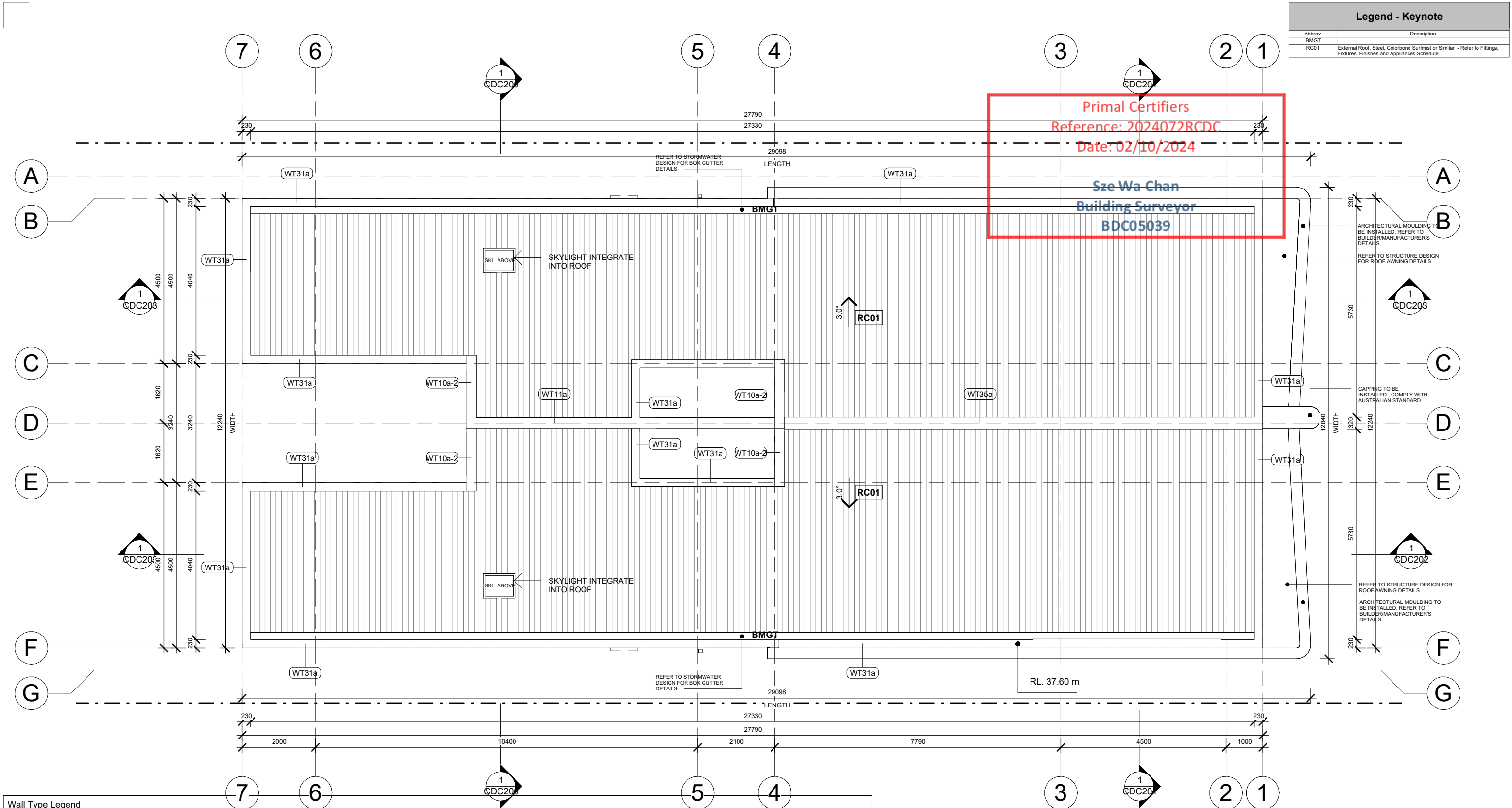
DRAWING TITLE

FIRST FLOOR PLAN

JOB No.	JRZ - 24096
DATE	May 2024
SCALE	A3 @
DWG No.	

CDC102 B

28 Kensington Road, Kensington NSW 2033; Lot 57 in Section 5A DP4745



Legend - Keynote	
Abbrev.	Description
BMGT	
RC01	External Roof, Steel, Colorbond Surfist or Similar - Refer to Fittings, Fixtures, Finishes and Appliances Schedule

Wall Type Legend			
	WT10a-1/10a-2/10b FULL BRICK WALL WITH CAVITY AND INSULATION AS REQUIRED INTERNAL PLASTERBOARD OR TILE FINISH TO SCHEDULE EXTERNAL RENDER & PAINT OR TILE FINISH TO SCHEDULE		WT21a/22a 155mm/200mm DINCEL WALL (CONCRETE) INTERNAL FINISH TO BUILDER/LIFT CONTRACTOR'S DETAILS EXTERNAL FINISH TO BUILDER/LIFT CONTRACTOR'S DETAILS
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	WT60a/60b/60c 92mm STEEL STUD WALL @450mm CENTRES PLASTERBOARD OR TILE FINISH TO SCHEDULE		
NOTES: All Walls, Slabs And Insulation To Comply With BCA F5.3 And Spec F5.2. ALL MATERIAL TO CONFIRM WITH THE CLIENT			

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28 Kensington Road, Kensington NSW 2033; Lot 57 in Section 5A DP4745

**INSTRUMENT SETTING OUT TERMS OF EASEMENTS OR PROFITS À
PRENDRE INTENDED TO BE CREATED OR RELEASED AND OF
RESTRICTIONS ON THE USE OF LAND OR POSITIVE COVENANTS
INTENDED TO BE CREATED PURSUANT TO SECTION 88B CONVEYANCING
ACT, 1919.**

Lengths are in metres

Sheet 1 of 4 sheets

Plan:

Plan of Subdivision of Lot 57 Section 5A DP 4745

**Full name and address
of the owner of the land**

MAURO TOMMASINI
28 KENSINGTON ROAD, KENSINGTON, 2033

PART 1 (Creation)

Number of items shown in the intention panel on the Plan	Identity of easement, profit à prendre, restriction on the use of land or positive covenant to be created and referred to in the Plan	Burdened lot(s) or parcel(s)	Benefited lot(s), road(s), bodies or Prescribed Authorities
1	POSITIVE COVENANT (ON-SITE DETENTION, RAINWATER & PUMPOUT TANK)	1, 2	CITY OF RANDWICK
2	RESTRICTIONS ON THE USE OF LAND (ON-SITE DETENTION, RAINWATER & PUMPOUT TANK)	1, 2	CITY OF RANDWICK

.....
Witness

Ref: 9000255-1 88B

**INSTRUMENT SETTING OUT TERMS OF EASEMENTS OR PROFITS À
PRENDRE INTENDED TO BE CREATED OR RELEASED AND OF
RESTRICTIONS ON THE USE OF LAND OR POSITIVE COVENANTS
INTENDED TO BE CREATED PURSUANT TO SECTION 88B CONVEYANCING
ACT, 1919.**

Lengths are in metres

Sheet 2 of 4 sheets

Plan:

Plan of Subdivision of Lot 57 Section 5A DP 4745

PART 2 (Terms)

1. Terms of Positive Covenant numbered 1 in Part 1:

TERMS TO BE DETERMINED AT FINAL STAGE OF SUBDIVISION

2. Terms of Restrictions on the Use of Land numbered 2 in Part 1:

TERMS TO BE DETERMINED AT FINAL STAGE OF SUBDIVISION

**Name of Persons or Authority whose consent is required to release, vary or
modify the Positive Covenant and the Restrictions on the Use of Land
numbered 1 & 2 in this instrument is:**

COUNCIL OF THE CITY OF RANDWICK

.....
Witness

Ref: 9000255-1 88B

**INSTRUMENT SETTING OUT TERMS OF EASEMENTS OR PROFITS À
PRENDRE INTENDED TO BE CREATED OR RELEASED AND OF
RESTRICTIONS ON THE USE OF LAND OR POSITIVE COVENANTS
INTENDED TO BE CREATED PURSUANT TO SECTION 88B CONVEYANCING
ACT, 1919.**

Lengths are in metres

Sheet 3 of 4 sheets

Plan:

Plan of Subdivision of Lot 57 Section 5A DP 4745

EXECUTED BY THE REGISTERED PROPRIETOR

.....
MAURO TOMMASINI

.....
Name of Witness

.....
Signature of Witness

.....
Address of Witness

.....
Witness

Ref: 9000255-1 88B

**INSTRUMENT SETTING OUT TERMS OF EASEMENTS OR PROFITS À
PRENDRE INTENDED TO BE CREATED OR RELEASED AND OF
RESTRICTIONS ON THE USE OF LAND OR POSITIVE COVENANTS
INTENDED TO BE CREATED PURSUANT TO SECTION 88B CONVEYANCING
ACT, 1919.**

Lengths are in metres

Sheet 4 of 4 sheets

Plan:

Plan of Subdivision of Lot 57 Section 5A DP 4745

COUNCIL OF THE CITY OF RANDWICK

Authorised Officer as Delegate of COUNCIL OF THE CITY OF RANDWICK
Pursuant to Section 378 of the Local Government Act 1993.

Signature of Delegate

Signature of Witness

Name of Delegate

Name of Witness

Position of Delegate

Address of Witness

.....
Witness

Ref: 9000255-1 88B

DEPOSITED PLAN ADMINISTRATION SHEET

Sheet 1 of 2 sheet(s)

Office Use Only Registered: Title System:	Office Use Only DRAFT
PLAN OF SUBDIVISION OF LOT 57 SECTION 5A DP 4745	LGA: RANDWICK Locality: KENSINGTON Parish: ALEXANDRIA County: CUMBERLAND
Survey Certificate I,MINGYANG JIANG of ISA SURVEYORS P/L a surveyor registered under the <i>Surveying and Spatial Information Act 2002</i>, certify that: *(a) The land shown in the plan was surveyed in accordance with the Surveying and Spatial Information Regulation 2017, is accurate and the survey was completed on, or *(b) The part of the land shown in the plan (*being/*excluding **.....) was surveyed in accordance with the Surveying and Spatial Information Regulation 2017, the part surveyed is accurate and the survey was completed on..... the part not surveyed was compiled in accordance with that Regulation, or *(c) The land shown in this plan was compiled in accordance with the <i>Surveying and Spatial Information Regulation 2017</i>. Datum Line: Type: *Urban/*Rural The terrain is *Level Undulating / *Steep Mountainous. Signature: Dated:9/12/2024 Surveyor Identification No: ...8948..... Surveyor registered under the <i>Surveying and Spatial Information Act 2002</i> *Strike out inappropriate words. **Specify the land actually surveyed or specify any land shown in the plan that is not the subject of the survey.	Crown Lands NSW/Western Lands Office Approval I, (Authorised Officer) in approving this plan certify that all necessary approvals in regard to the allocation of the land shown herein have been given. Signature: Date: File Number: Office: Subdivision Certificate I, *Authorised Person/*General Manager/*Registered Certifier, certify that the provisions of s.6.15 of the <i>Environmental Planning and Assessment Act 1979</i> have been satisfied in relation to the proposed subdivision, new road or reserve set out herein. Signature: Registration number: Consent Authority: Date of endorsement: Subdivision Certificate number: File number: *Strike through if inapplicable.
Plans used in the preparation of survey/compilation. DP 4745 DP 529786 DP 1084469	Statements of intention to dedicate public roads create public reserves and drainage reserves, acquire/resume land.
Surveyor's Reference: 9000255-1	Signatures, Seals and Section 88B Statements should appear on PLAN FORM 6A

Office Use Only

Office Use Only

Registered:**PLAN OF SUBDIVISION OF LOT 57****SECTION 5A****DP 4745**

Subdivision Certificate number:

Date of Endorsement:

DRAFT

This sheet is for the provision of the following information as required:

- A schedule of lots and addresses - See 60(c) *SSI Regulation 2017*
- Statements of intention to create and release affecting interests in accordance with section 88B *Conveyancing Act 1919*
- Signatures and seals- see 195D *Conveyancing Act 1919*
- Any information which cannot fit in the appropriate panel of sheet 1 of the administration sheets.

STREET ADDRESSES

Lot	Street Number	Street Name	Street Type	Locality
1	28	KENSINGTON	ROAD	KENSINGTON
2	28a	KENSINGTON	ROAD	KENSINGTON

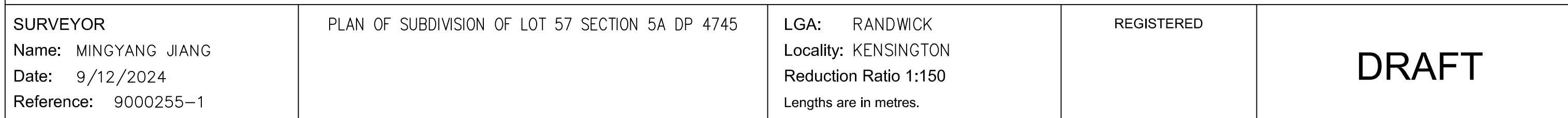
PURSUANT TO SECTION 88B OF THE CONVEYANCING ACT 1919 AS AMENDED, IT IS INTENDED TO CREATE:

1. POSITIVE COVENANT (ON-SITE DETENTION, RAINWATER & PUMPOUT TANK)
2. RESTRICTIONS ON THE USE OF LAND (ON-SITE DETENTION, RAINWATER & PUMPOUT TANK)

EXECUTED BY THE REGISTERED PROPRIETOR.....
MAURO TOMMASINI.....
Name of Witness.....
Signature of Witness.....
Address of Witness

If space is insufficient use additional annexure sheet

Surveyor's Reference: 9000255-1



Schedule 2 – Schedule of Finishes

28 & 28a Kensington Road Kensington Finishes Schedule

Kitchen	
Cooktop	Miele 90cm Cooktop
Rangehood	Miele 90cm Rangehood
Dishwasher	Miele Fully Integrated Dishwasher
Oven	Miele Built-in 60cm Oven
Microwave Oven	Miele Built-in 60cm Microwave Oven
Refrigerator	Fisher and Paykel fully integrated fridge
Benchtop and splashback	Taj Mahal Stone
Cabinets Finish	Oak or Maple coloured laminate
Other Fixtures	Pull-out mixer tap, underbench double sink
Laundry	
Wall Tile	Ceramic Wall Tiles
Washing Machine	Bosch Serie 8 Washing Machine
Dryer	Bosch Serie 8 Dryer
Cabinets Finish	Oak or Maple coloured laminate
Other Fixtures	Robe hook, hanger rail, mixer tap, underbench sink
Bathrooms / Ensuites	
Vanity Stone	Taj Mahal Stone
Wall Tile 1	Light coloured ceramic tiles
Wall Tile 2	Kit-Kat Wall Tiles
Other Fixtures	Mixer taps, basins, robe hooks, hanger rails, shower rose, in-wall cisterns, toilets, floor wastes, vanity cabinets
General Area	
Ground Floor Timber Flooring	Oak Coloured herringbone timber flooring
First Floor Timber Flooring	Engineered timber flooring
External Deck	Oak Coloured eco-timber
Fire Place	Alcohol fire place
BBQ Stove	Stainless steel built-in BBQ stove
Air-Conditioning	Daikin VRV Air-Conditioning System
Underbench Fridge	Underbench Beverage Fridge
Security System	
Intercom	Dahua Intercom System
Security Camera	Dahua Security Camera (front and backyard)
Alarm	Bosch Alarm System

Schedule 3 – Vendor Disclosure Documents



FOLIO: 57/5A/4745

SEARCH DATE	TIME	EDITION NO	DATE
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2/12/2025	9:58 AM	3	29/8/2024

LAND

LOT 57 OF SECTION 5A IN DEPOSITED PLAN 4745
LOCAL GOVERNMENT AREA RANDWICK
PARISH OF ALEXANDRIA COUNTY OF CUMBERLAND
TITLE DIAGRAM DP4745

FIRST SCHEDULE

WL KENSINGTON PTY LTD (T AU372685)

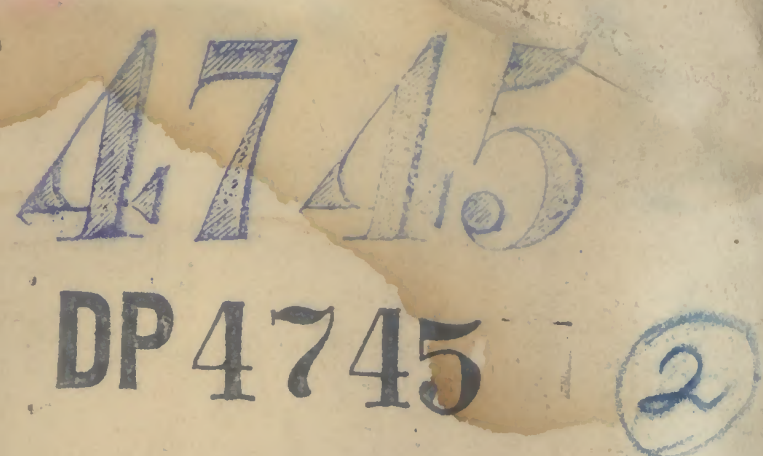
SECOND SCHEDULE (2 NOTIFICATIONS)

- 1 RESERVATIONS AND CONDITIONS IN THE CROWN GRANT(S)
- 2 AU372686 MORTGAGE TO PERMANENT CUSTODIANS LIMITED

NOTATIONS

UNREGISTERED DEALINGS: NIL

*** END OF SEARCH ***



PLAN

True bearings given on plan

No.	Lot.	Sec.	Particulars
(1)	40	5A	FP 306738
(2)	1&2	8	FP 307903
(3)	54	5A	FP 311317
(4)	Lane		Resumption of land for improvement. Emballishment S.D.B. 50-112 (Plan 2) Gaz. 12-1-51. Fol. 72. N.R. 4413601
(5)	34	5	FP.383775 (Sur).
(6)	33	5	FP.444760 (Sur).
(7)	30	5	FP.444404 (Sur).
(8)	10	8	FP.445643 (Sur).
(9)	39	5A	FP.47218 (Sur).
(10)	P.11	8	D.P.100639
(11)	P.16	5A	FP.935225
(12)	P.13	5A	DP.522175 Departmental.
(13)	37	5A	D.P. 234580 (Sur)
(14)	51	5A	D.P.529786 (Sur)
(15)	43	5A	D.P. 533668 (Sur)
(16)	38	5A	Strata Plan 4499

I Charles William Bray King of 129 Pitt Street Sydney
Licensed Surveyor, specially licensed under the Real Property
Act, do hereby solemnly and sincerely declare that the boundaries
and measurements shown on this plan are correct for the purposes
of the said Act, and that the said Plan and the survey of
the land to which the same relates, have been prepared and made
by me, or under my immediate supervision; and I make this
solemn declaration, conscientiously believing the same to be
true, and by virtue of the provisions of the Oaths Act 1900.

Subscribed and declared before me at Sydney
this 22 day of May AD 1900

Chas. H. Kump
Licensed Surveyor
Date of Survey *March 17th 1906*

DP 4745



CONVERSION TABLE ADDED IN
REGISTRAR GENERAL'S DEPARTMENT

DP. 4745		
FEET INCHES		METRES
10	-	3.05
20	-	6.095
43	8 3/4	13.33
48	6	14.785
50	-	15.24
60	11 3/4	18.585
61	0 3/4	18.61
66	-	20.115
100	-	30.48
148	6	45.265
AC RD P		SQ M
-	- 23 3/4	600.7
-	- 25	632.3
-	- 26 1/4	663.9
-	- 27 1/4	689.2



COMPLYING DEVELOPMENT CERTIFICATE --- 2024072RCDC

PROJECT REFERENCE 2024072RCDC

Issued under Part 4, Division 4.5 of the Environmental Planning and Assessment Act 1979

Please note that this approval does NOT authorise the commencement of any construction works until the Notice of Commencement, Home Warranty Insurance or Owner Builder Permit issued by NSW Fair Trading, Payment Receipt of Council Contributions or Evidence of Council Contribution Exemption, and Payment Receipt of Any Applicable Fees have been provided to the Principal Certifier.

APPLICANT DETAILS

Applicant:	WL KENSINGTON PTY LTD
Address:	28 Kensington Road, Kensington NSW 2033
Phone:	0431 585 521

OWNER DETAILS

Owner	WL KENSINGTON PTY LTD
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COMPLYING DEVELOPMENT CERTIFICATE DETAILS

NSW Planning Portal Ref Number:	CDC-245987
Local Government Area:	Randwick City Council
Relevant Environmental Planning Instrument	(SEPP) Exempt and Complying Development Codes 2008
Relevant Part of Code	Part 3B - Low Rise Housing Diversity Code & Part 7 - Demolition Code
Date of Determination:	02/10/2024
Date of Lapse:	02/10/2029

PROPOSAL

Address of Development:	28 Kensington Road, Kensington NSW 2033
Lot/Section/DP:	57/5A/DP4745
Land Use Zone:	R2
BCA Classification/s:	1a, 10a, 10b
Description of Building Works:	Demolition of Existing Structures and Construction of Dual Occupancy with Swimming Pool
Value of Construction (incl. GST):	\$1,300,000.00
Attachments	Schedule 1: Approved Plans and Specifications and Supporting Documentation Relied Upon
Conditions:	Conditions under the Environmental Planning and Assessment Regulation 2021 and State Environmental Planning Policy (Exempt and Complying Development) Codes 2008
Critical stage inspections:	See attached Notice

REGISTERED CERTIFIER

Registered Certifier:	Sze Wa Chan
Registration No:	BDC05039
Registration Body:	NSW Fair Trading

I, Sze Wa Chan, certify that the development is complying development and (if carried out as specified in the certificate) will comply with all development standards applicable to the development and with such other requirements prescribed by this regulation concerning the issue of the certificate.



PrimalCertifiers Ptd Ltd
Suite 5A, 10-12 Woodville Street,
Hurstville NSW 2220
Tel: 02 8089 0283
Email: info@primalcertifiers.com.au

Dated:

02/10/2024

A handwritten signature in black ink, appearing to read 'Cei', is positioned above the name Sze Wa Chan.

Sze Wa Chan

N.B. Prior to the commencement of work section 6.6 of the Environment Planning and Assessment Act 1979 must be satisfied.

(**note** - this information has been taken directly from, and as accepted by, the NSW Government Planning Portal CDC application)

PLANNING CERTIFICATE

ENVIRONMENTAL PLANNING AND ASSESSMENT ACT 1979

Mr Y He
110 Caroline St
KINGSGROVE NSW 2208

Description of land: Lot 57 Sec 5A DP 4745

Address: 28 Kensington Road, KENSINGTON NSW 2033

Date of Certificate: 2 December 2025

Certificate No: 75810

Receipt No: 5810688

Amount: \$71.00

Reference: 28KENSINGTON:101197

This planning certificate should be read in conjunction with the **Randwick City Council Local Environmental Plan 2012**. This is available on the NSW Legislation website at <https://www.legislation.nsw.gov.au/#/view/EPI/2013/36>

The land to which this planning certificate relates, being the lot or one of the lots described in the application made for this certificate, is shown in the Council's record as being situated at the "Address" stated above. The legal "description of land" (by lot(s) and DP/SP numbers) is obtained from NSW Land Registry Services. It is the responsibility of the applicant to enquire and confirm with NSW Land Registry Services the accuracy of the lot(s) and DP/SP numbers pertaining to the land for which application is made for the certificate.

There is more information about some property conditions than is included on this property certificate.

*If this case, after the condition text, there is a URL and a square bar code or 'QR code' which provides the address of a page on the Randwick City Council website.
You will need internet access and either:*

1. **Download a QR code scanner** app to your phone and scan the QR code
or
2. **Type the URL** into your internet browser



INFORMATION PROVIDED UNDER SECTION 10.7 (2)

In accordance with the requirements of section 10.7 of the Environmental Planning and Assessment Act 1979 and Schedule 2 of the Environmental Planning and Assessment Regulation 2021 (as amended), the following prescribed matters relate to the land as at the date of this certificate. The information provided in reference to the prescribed matters has been obtained from Council's records and/or from other authorities/government department. The absence of any reference to a matter affecting the land shall not imply that the land is not affected by that matter not referred to in this certificate. Council provides the information in good faith but disclaims all liability for any omission or inaccuracy. Please contact Council's Strategic Planning team on 1300 722 542 for further information about this Planning Certificate.

1 Names of relevant planning instruments and DCPs

(1) The name of each environmental planning instrument and development control plan that applies to the carrying out of development on the land.

State Environmental Planning Policies (SEPPs)

- [State Environmental Planning Policy \(Biodiversity and Conservation\) 2021](#)
- [State Environmental Planning Policy \(Exempt and Complying Development Codes\) 2008](#)
- [State Environmental Planning Policy \(Housing\) 2021](#)
- [State Environmental Planning Policy \(Industry and Employment\) 2021](#)
- [State Environmental Planning Policy \(Planning Systems\) 2021](#)
- [State Environmental Planning Policy \(Resilience and Hazards\) 2021](#)
- [State Environmental Planning Policy \(Resources and Energy\) 2021](#)
- [State Environmental Planning Policy \(Sustainable Buildings\) 2022](#)
- [State Environmental Planning Policy \(Transport and Infrastructure\) 2021](#)

Note: Any questions regarding State Environmental Planning Policies and Regional Environmental Plans should also be directed to the Department of Planning, Housing and Infrastructure on 1300 305 695 or www.planning.nsw.gov.au.

Local Environmental Plan (LEP) Gazetted 15 February 2013

- **Randwick LEP 2012 (Amendment No1) - Gazetted 21 November 2014**
Applies to part of Royal Randwick Racecourse (identified as "Area A" on the LEP Additional Permitted Uses Map). Permits additional uses of hotel or motel accommodation, serviced apartments and function centres with development consent.
- **Randwick LEP 2012 (Amendment No2) - Gazetted 2 April 2015**
Applies to land at Young Street Randwick – Inglis Newmarket Site (shown as Area 1 on the LEP Key Sites Map). Amendment to planning controls, including zoning, height of buildings, heritage items and heritage area, FSR (subject to new Clause 6.16) and inclusion of the site as a Key Site.
- **Randwick LEP 2012 (Amendment No3) - Gazetted 15 July 2016**
Amends Schedule 1 to include 'childcare centre' as an additional permitted use (with development consent) at 270 Malabar Road, Maroubra (Lot 3821, DP 752015).
- **Randwick LEP 2012 (Amendment No4) - Gazetted 25 January 2018**
Applies to part of the land at 1T Romani Way, MATRAVILLE (Lot 1 DP 107189). Amendment to planning controls, including zoning, height of buildings and FSR.
- **Randwick LEP 2012 (Amendment No5) - Gazetted 17 August 2018**



Applies to subdivision of dual occupancies (attached) in the Zone R2 Low Density Residential for which development consent was granted before 6 July 2018. Permits development consent to be granted for the Torrens Title or Strata subdivision of a dual occupancy if the development meets certain standards specified in State Environmental Planning Policy (Exempt and Complying Development Codes) 2008.

- **Randwick LEP 2012 (Amendment No 6) – Gazetted 22 February 2019**

Applies to the following land in Coogee, 38 Dudley Street (Lot 17 DP 6489), 40 Dudley Street (Lot 18 DP 6489), 42 Dudley Street (Lot 19 DP 6489), 44 Dudley Street (Lot 20 DP 6489 & Lot 1 DP 952229), 46 Dudley Street (Lot 2 in DP 952229) and 122 Mount Street (Lot 22 DP 6489) by incorporating these properties into the Dudley Street Heritage Conservation Area. Further, 38 Dudley Street (Lot 17 DP 6489), 42 Dudley Street (Lot 19 DP 6489), 44 Dudley Street (Lot 20 DP 6489 & Lot 1 DP 952229) and 122 Mount Street (Lot 22 DP 6489) have been listed as local heritage items in Schedule 5 the Randwick LEP 2012.

- **Randwick LEP 2012 (Amendment No 7) – Gazetted 10 July 2020**

Applies to the following land in Coogee, 39 Dudley Street (Lot B DP 301192), 41 Dudley Street (Lot C DP 301192) and 148 Brook Street (Lot B DP 305284) which have now been listed as Local Heritage Items in Schedule 5 the Randwick LEP 2012.

- **Randwick LEP 2012 (Amendment No. 8) - Gazetted 14 August 2020**

Applies to all land located within the Kensington and Kingsford town centres. Amendment to planning controls to include maximum height of buildings, FSR, Non-residential FSR, active street frontages, affordable housing inclusionary zoning, a Community Infrastructure Contribution, design excellence and architectural competition requirements and inclusion of the following land in the B2 Local Centre zone: 7 Addison Street KENSINGTON NSW 2033 (SP 11800), 157 Todman Avenue KENSINGTON NSW 2033 (SP 45348), 16,18 & 20 Barker Street, KENSINGTON NSW 2033 (Lot 1 DP 950767, Lot 1 DP 954209 & SP 65941), 582-584 Anzac Parade KINGSFORD NSW 2032 (Lot 1 DP 516025), 586-592 Anzac Parade KINGSFORD NSW 2033 (Lot 1 DP 942606, Pt Lot 1 DP 949009), 63 Harbourne Road, KINGSFORD NSW 2032 (SP 39850) and 12,14,16 & 18 Rainbow Street KINGSFORD NSW 2032 (Lot 13 DP 6134, SP 45197, Lot 15 DP 6134 & Lot 16 DP 6134).

- **Randwick LEP 2012 (Amendment No 9) – Gazetted 18 August 2023**

Amends and applies key changes including revisions to Minimum Lot Size for Subdivision, new and expanded Heritage Conservation Areas (HCAs) and Heritage Items, new medium density housing areas, numerous Zone alignments along with LEP changes comprising Open Space and Recreation Environmental Resilience and Housekeeping changes:

- New planning controls (zoning, height of building and FSR) in five identified Housing Investigation Areas (HIAs) proximate to the light rail alignment or town and strategic centres
- Application of an Affordable Housing Contribution Scheme in the five Housing Investigation Areas
- Changes to controls for the construction and subdivision of attached dual occupancies in the R2 Low Density Residential zone
- New Heritage Items, a new HCA, a new archaeological site, and a boundary adjustment to an HCA
- Controls to promote environmental resilience
- Strengthening of open space requirements and creation of new open space zones
- Changes to zone objectives and new exempt development provisions to support a diverse, safe and inclusive night time economy
- New planning controls including changes to zoning and density of 5 neighbourhood clusters zoned residential to protect existing shops and businesses
- A new E1 employment zone inside the Kingsford South HIA
- Updating land zoning and development control maps to reflect the Randwick Hospital Expansion area and the Randwick Racecourse (Light Rail Stabling Yard)
- Rezoning and increased development standards for several sites based on owner-initiated rezoning requests; and
- Housekeeping amendments to correct zoning and boundary anomalies.

- **Randwick LEP 2012 (Amendment No 10) – Gazetted 28 April 2023**



Applies to 11A Marcel Avenue Coogee (Lot 51 DP 318884) which has been listed as a Local Heritage Item in Schedule 5 of the Randwick LEP 2012. Further, the boundary of the adjacent Moira Crescent Heritage Conservation Area is extended to incorporate the property at 11A Marcel Avenue Coogee.

- **Randwick LEP 2012 (Amendment No 11) – Gazetted 08 December 2023**

Applies to the following land in Coogee, 1 Berwick Street (Lot A, DP 313214) and 3 Berwick Street (Lot B, DP 313214) which have now been listed as Local Heritage Items in Schedule 5 of the Randwick LEP 2012.

Development control plans that apply to the carrying out of development on the land

- **Randwick DCP adopted by Council on the 28 May 2013 and came into effect on the 14th of June 2013**

Provides detailed planning controls and guidance for development applications

- **Randwick DCP Stage 1 update adopted by Council on the 27 June 2023 and came into effect on 1st September 2023**

Replaces DCP 2013 Parts B2 Heritage, C1 Low Density Residential and E2 Randwick Education and Health Specialised Centre with updated Parts and introduces new Part E7 Housing Investigation Areas

(2) *The name of each proposed environmental planning instrument and draft development control plan, which is or has been subject to community consultation or public exhibition under the Act, that will apply to the carrying out of development on the land.*

- **None**

(3) *Subsection (2) does not apply in relation to a proposed environmental planning instrument or draft development control plan if—*

- (a) *it has been more than 3 years since the end of the public exhibition period for the proposed instrument or draft plan, or*
- (b) *for a proposed environmental planning instrument—the Planning Secretary has notified the council that the making of the proposed instrument has been deferred indefinitely or has not been approved.*

(4) *In this section—*

proposed environmental planning instrument means a draft environmental planning instrument and includes a planning proposal for a local environmental plan.

2 Zoning and land use under relevant LEPs

The following matters for each environmental planning instrument or draft environmental planning instrument that includes the land in a zone, however described

- (a) *The identity of the zone, whether by reference to —*
 - (i) *a name, such as "Residential Zone" or "Heritage Area", or*
 - (ii) *a number, such as "Zone No 2 (a)",*
- (b) *the purposes for which development in the zone—*
 - (i) *may be carried out without development consent, and*
 - (ii) *may not be carried out except with development consent, and*
 - (iii) *is prohibited,*

Zone R2 (Low Density Residential) in Randwick LEP 2012.

1. Objectives of zone

- To provide for the housing needs of the community within a low density residential environment.
- To enable other land uses that provide facilities or services to meet the day to day needs of residents.



- To recognise the desirable elements of the existing streetscape and built form or, in precincts undergoing transition, that contribute to the desired future character of the area.
- To protect the amenity of residents.
- To encourage housing affordability.
- To enable small-scale business uses in existing commercial buildings.

2. Permitted without consent

Home occupations; Recreation areas

3. Permitted with consent

Bed and breakfast accommodation; Boarding houses; Building identification signs; Business identification signs; Business premises; Centre-based child care facilities; Community facilities; Dual occupancies (attached); Dwelling houses; Group homes; Health consulting rooms; Home-based child care; Home businesses; Home industries; Office premises; Oyster Aquaculture; Passenger transport facilities; Places of public worship; Recreation facilities (indoor); Recreation facilities (outdoor); Respite day care centres; Restaurants or cafes; Roads; Semi-detached dwellings; Shops; Tank-based aquaculture

4. Prohibited

Funeral homes; Any other development not specified in item 2 or 3.

(c) whether additional permitted uses apply to the land,

The land IS NOT subject to any additional permitted uses.

(d) whether development standards applying to the land fix minimum land dimensions for the erection of a dwelling house on the land and, if so, the fixed minimum land dimensions,

The land IS NOT subject to any development standards that fix minimum land dimensions for the erection of a dwelling house.

(e) whether the land is in an area of outstanding biodiversity value under the Biodiversity Conservation Act 2016,

The land DOES NOT include or comprise a critical habitat area under the Biodiversity Conservation Act 2016.

(f) Whether the land is in a conservation area, however described

The land IS NOT located in a heritage conservation area under the Randwick LEP 2012.

(g) whether an item of environmental heritage, however described, is located on the land.

The land IS NOT listed as a heritage item under the Randwick LEP 2012.

The land IS NOT listed on the State Heritage Register under Heritage Act 1977.

3 Contributions plans

(1) The name of each contributions plan under the Act, Division 7.1 applying to the land, including draft contributions plans.

(2) If the land is in a special contributions area under the Act, Division 7.1, the name of the area.

Randwick City Council Section 7.12 Development Contributions Plan (effective 31 July 2024).



4 Complying Development

(1) If the land is land on which complying development may be carried out under each of the complying development codes under State Environmental Planning Policy (Exempt and Complying Development Codes) 2008, because of that Policy, clause 1.17A(1)(c)–(e), (2), (3) or (4), 1.18(1)(c3) or 1.19.

(2) If complying development may not be carried out on the land because of 1 of those clauses, the reasons why it may not be carried out under the clause.

(3) If the council does not have sufficient information to ascertain the extent to which complying development may or may not be carried out on the land, a statement that—
(a) a restriction applies to the land, but it may not apply to all of the land, and
(b) the council does not have sufficient information to ascertain the extent to which complying development may or may not be carried out on the land.

(4) If the complying development codes are varied, under that Policy, clause 1.12, in relation to the land.

Housing Code

Complying development under the Housing Code **MAY** be carried out on the land.

Low Rise Housing Diversity Code

Complying development under the Low Rise Housing Diversity Code **MAY** be carried out on the land.

Rural Housing Code

Complying development under the Rural Housing Code **MAY** be carried out on the land.

Housing Alterations Code

Complying development under the Housing Alterations Code **MAY** be carried out on the land.

General Development Code

Complying development under the General Development Code **MAY** be carried out on the land.

Industrial and Business Alterations Code

Complying development under the Commercial and Industrial Alteration Code **MAY** be carried out on the land.

Industrial and Business Buildings Code

Complying development under the Commercial and Industrial (New Buildings and Additions) Code **MAY** be carried out on the land.

Container Recycling Facilities Code

Complying Development under the Container Recycling Facilities Code **MAY** be carried out on the land.



Subdivisions Code

Complying development under the Subdivisions Code **MAY** be carried out on the land.

Demolition Code

Complying development under the Demolition Code **MAY** be carried out on the land.

Fire Safety Code

Complying development under the Fire Safety Code **MAY** be carried out on the land.

A copy of the Codes SEPP is available at www.planning.nsw.gov.au. For further information please call the Department of Planning, Housing and Infrastructure on Free call 1300 305 695 or www.planning.nsw.gov.au.

Note: To be complying development, the development must meet the General requirements set out in clause 1.18 of the State Environment Planning Policy (Exempt and Complying Development Codes) 2008. Development must also meet all development standards set out in the relevant code.

Note: This information needs to be read in conjunction with the whole of the State Environment Planning Policy. If an identification, restriction or characteristic of land referred to above is not located on or does not comprise, the whole of the relevant land, complying development may be carried out on any part of the land not so identified, restricted or characterised.

Note: Information regarding whether the property is affected by flood related development controls or is bushfire prone land is identified in other sections of this certificate. If your property is identified as being impacted by bushfire or flooding, a specific technical assessment of these issues will be required as part of any Complying Development Certificate application under the State Environment Planning Policy, or a development application for any other type of development requiring consent from Council.

Note: Despite any references above advising that Complying Development may be undertaken on the land, certain Complying Development may be precluded from occurring on the land due to requirements contained in the remainder of State Environment Planning Policy (Exempt and Complying Development Codes) 2008. It is necessary to review the State Environment Planning Policy in detail to ensure that specific types of complying development may be undertaken on the land.

5 Exempt Development

- (1) If the land is land on which exempt development may be carried out under each of the exempt development codes under State Environmental Planning Policy (Exempt and Complying Development Codes) 2008, because of that Policy, clause 1.16(1)(b1)–(d) or 1.16A.
- (2) If exempt development may not be carried out on the land because of 1 of those clauses, the reasons why it may not be carried out under the clause.
- (3) If the council does not have sufficient information to ascertain the extent to which exempt development may or may not be carried out on the land, a statement that—
 - (a) a restriction applies to the land, but it may not apply to all of the land, and
 - (b) the council does not have sufficient information to ascertain the extent to which exempt development may or may not be carried out on the land.
- (4) If the exempt development codes are varied, under that Policy, clause 1.12, in relation to the land.

Division 1 General Code

Exempt development under the Code **MAY** be carried out on the land.

Division 2 Advertising and Signage Code



Exempt development under the Code **MAY** be carried out on the land.

Division 3 Temporary Uses and Structures Code

Exempt development under the Code **MAY** be carried out on the land.

Division 4 Special Provisions – COVID 19

Repealed

Note: Despite any references above advising that Exempt Development may be undertaken on the land, certain Exempt Development may be precluded from occurring on the land due to requirements contained in the remainder of State Environmental Planning Policy (Exempt and Complying Development Codes) 2008. It is necessary to review the State Environmental Planning Policy in detail to ensure that specific types of exempt development may be undertaken on the land.

Note: Under the State Environmental Planning Policy (Exempt and Complying Development Codes) 2008, demolition of a heritage item, draft heritage item, in a heritage conservation area, or a draft conservation area is not permitted.

Note: In heritage conservation areas and draft heritage conservation areas, some exempt development types may be restricted to the rear yard only.

6 Affected building notices and building product rectification orders

(1) *Whether the council is aware that—*

- (a) *an affected building notice is in force in relation to the land, or*
- (b) *a building product rectification order is in force in relation to the land that has not been fully complied with, or*
- (c) *a notice of intention to make a building product rectification order given in relation to the land is outstanding.*

(2) *In this section—*

affected building notice has the same meaning as in the Building Products (Safety) Act 2017, Part 4.

building product rectification order has the same meaning as in the Building Products (Safety) Act 2017.

The land IS NOT affected by any notice or order within the meaning of the Building Products (Safety) Act 2017.

7 Land reserved for acquisition

Whether an environmental planning instrument or proposed environmental planning instrument referred to in section 1 makes provision in relation to the acquisition of the land by an authority of the State, as referred to in the Act, section 3.15.

State Environmental Planning Policies

Council is unable to provide any site-specific information on the provisions of any State Environmental Planning Policy regarding the acquisition of land. Information on State Environmental Planning Policies listed in this certificate is available at NSW Legislation – In force legislation. Any enquiries regarding State and Regional Environmental Planning Policies should be directed to the Department of Planning, Housing and Infrastructure's website.

Draft State Environmental Planning Policies

Council is unable to provide site-specific information on the provisions of any draft State Environmental Planning Policy regarding the acquisition of land. Information on the draft State Environmental Planning Policies listed in this certificate is available on the Department of Planning, Housing and Infrastructure Have Your Say webpage for Draft plans and policies. Any enquiries regarding State and Regional Environmental Planning Policies should be directed to the Department of Planning, Housing and Infrastructure's website.



Local Environmental Plan

The land IS NOT affected by any environmental planning instrument or proposed environmental planning instrument referred to in section 1 that makes provision in relation to the acquisition of the land by an authority of the State, as referred to in the Act, section 3.15.

8 Road widening and road realignment

Whether the land is affected by road widening or road realignment under—

(a) the Roads Act 1993, Part 3, Division 2, or

The land IS NOT affected by any road widening or road realignment under the Roads Act 1993, Part 3, Division 2.

(b) an environmental planning instrument, or

The land IS NOT affected by any road widening or road realignment under the provisions of Randwick LEP 2012.

(c) a resolution of the Council.

The land IS NOT affected by any resolution of the Council for any road widening or road realignment.

Note: This item relates to Council's road proposals only. Other authorities, including Transport for NSW may have road widening proposals.

9 Flood related development controls

(1) If the land or part of the land is within the flood planning area and subject to flood related development controls.

No.

(2) If the land or part of the land is between the flood planning area and the probable maximum flood and subject to flood related development controls.

No.

(3) In this section—

flood planning area has the same meaning as in the Floodplain Development Manual.

Floodplain Development Manual means the Floodplain Development Manual (ISBN 0 7347 5476 0) published by the NSW Government in April 2005.

probable maximum flood has the same meaning as in the Floodplain Development Manual.

Note: The information provided in Item 9 is based on the data and information presently available to the Council and on development controls in force as at the date of this certificate. The identification of land as not being subject to flood related development controls does not mean that the land is not, or may not be, subject to flooding or that the land will not in the future be subject to flood related development controls, as additional data and information regarding the land become available.

Details relating to flood risk and flood planning levels may be provided on a Flood Level Certificate. The application form is available on Council's website.

10 Council and other public authority policies on hazard risk restrictions

(1) Whether any of the land is affected by an adopted policy that restricts the development of the land because of the likelihood of land slip, bush fire, tidal inundation, subsidence, acid sulphate soils, contamination, aircraft noise, salinity, coastal hazards, sea level rise or another risk, other than flooding.



Council HAS NOT adopted a policy or been notified of any adopted policy of another public authority, that restricts development on the land because of the likelihood of land slip, bush fire, tidal inundation, subsidence; salinity, coastal hazards, or sea level rise.

Council DOES HAVE adopted policies or has been notified of adopted policies of another public authority on matters relating to the risk of acid sulphate soils; contamination; low-lying lands; aircraft noise; Malabar Treatment Plant odour; and Former Matraville Incinerator land.

(2) *In this section—*

adopted policy means a policy adopted—

(a) *by the Council, or*

Excluding Councils Contaminated Land Policy, the subject land IS NOT affected by any other council policy relating to hazard risk restrictions.

(b) *by another public authority, if the public authority has notified the Council that the policy will be included in a planning certificate issued by the Council.*

The land IS NOT affected by a policy adopted by any other public authority and notified to the council for the express purpose of its adoption by that authority being referred to in planning certificates issued by the council that restricts the development of the land because of the likelihood of land slip, bushfire, (other than flooding), tidal inundation, subsidence, acid sulphate soils or any other risk.

11 Bush fire prone land

(1) *If any of the land is bush fire prone land, designated by the Commissioner of the NSW Rural Fire Service under the Act, section 10.3, a statement that all or some of the land is bush fire prone land.*

(2) *If none of the land is bush fire prone land, a statement to that effect.*

The land IS NOT bush fire prone land (as defined in the Act).

12 Loose-fill asbestos insulation

If the land includes residential premises, within the meaning of the Home Building Act 1989, Part 8, Division 1A, that are listed on the Register kept under that Division, a statement to that effect.

The land DOES NOT include any residential premises (within the meaning of the Home Building Act 1989, Part 8, Division 1A) that are listed on the register kept under that Division.

13 Mine subsidence

Whether the land is declared to be a mine subsidence district, within the meaning of the Coal Mine Subsidence Compensation Act 2017.

The land IS NOT declared to be a mine subsidence district within the meaning of the Coal Mine Subsidence Compensation Act 2017.

14 Paper subdivision information

(1) *The name of a development plan adopted by a relevant authority that—*

- (a) *applies to the land, or Page 151 Environmental Planning and Assessment Regulation 2021 [NSW] Schedule 2 Planning certificates Published LW 17 December 2021 (2021 No 759)*
- (b) *is proposed to be subject to a ballot.*

(2) *The date of a subdivision order that applies to the land.*



(3) Words and expressions used in this section have the same meaning as in this Regulation, Part 10 and the Act, Schedule 7.

The land IS NOT land to which a development plan or subdivision order applies.

15 Property vegetation plans

If the land is land in relation to which a property vegetation plan is approved and in force under the Native Vegetation Act 2003, Part 4, a statement to that effect, but only if the council has been notified of the existence of the plan by the person or body that approved the plan under that Act.

Council HAS NOT been notified of any property vegetation plan under the Native Vegetation Act 2003, Part 4 applying to the land.

16 Biodiversity stewardship sites

If the land is a biodiversity stewardship site under a biodiversity stewardship agreement under the Biodiversity Conservation Act 2016, Part 5, a statement to that effect, but only if the council has been notified of the existence of the agreement by the Biodiversity Conservation Trust.

Council HAS NOT been notified that the land is a biodiversity stewardship site by the Biodiversity Conservation Trust.

Note: Biodiversity stewardship agreements include biobanking agreements under the Threatened Species Conservation Act 1995, Part 7A that are taken to be biodiversity stewardship agreements under the Biodiversity Conservation Act 2016, Part 5.

17 Biodiversity certified land

If the land is biodiversity certified land under the Biodiversity Conservation Act 2016, Part 8, a statement to that effect.

The land IS NOT biodiversity certified land.

Note: Biodiversity certified land includes land certified under the Threatened Species Conservation Act 1995, Part 7AA that is taken to be certified under the Biodiversity Conservation Act 2016, Part 8.

18 Orders under Trees (Disputes Between Neighbours) Act 2006

Whether an order has been made under Trees (Disputes Between Neighbours) Act 2006 to carry out work in relation to a tree on the land, but only if the council has been notified of the order.

The land IS NOT land to which an order under Trees (Disputes Between Neighbours) Act 2006 applies.

19 Annual charges under Local Government Act 1993 for coastal protection services that relate to existing coastal protection works

- (1) *If the Coastal Management Act 2016 applies to the council, whether the owner, or a previous owner, of the land has given written consent to the land being subject to annual charges under the Local Government Act 1993, section 496B, for coastal protection services that relate to existing coastal protection works.*
- (2) *In this section—
existing coastal protection works has the same meaning as in the Local Government Act 1993, section 553B.*

Note: Existing coastal protection works are works to reduce the impact of coastal hazards on land, such as seawalls, revetments, groynes and beach nourishment, that existed before 1 January 2011.

Not applicable.



20 State Environmental Planning Policy (Western Sydney Aerotropolis) 2020

Whether under State Environmental Planning Policy (Western Sydney Aerotropolis) 2020 the land is—

- (a) in an ANEF or ANEC contour of 20 or greater, as referred to in that Policy, clause 19, or*
- (b) shown on the Lighting Intensity and Wind Shear Map, or*
- (c) shown on the Obstacle Limitation Surface Map, or*
- (d) in the "public safety area" on the Public Safety Area Map, or*
- (e) in the "3 kilometre wildlife buffer zone" or the "13 kilometre wildlife buffer zone" on the Wildlife Buffer Zone Map.*

Not applicable.

21 Site compatibility certificates and conditions for seniors housing

If State Environmental Planning Policy (Housing) 2021, Chapter 3, Part 5 applies to the land, any conditions of a development consent granted after 11 October 2007 in relation to the land that are of the kind set out in that Policy, clause 88(2).

No.

22 Site compatibility certificates and development consent conditions for affordable rental housing

- (1) Whether there is a current site compatibility certificate under State Environmental Planning Policy (Housing) 2021, or a former site compatibility certificate, of which the council is aware, in relation to proposed development on the land and, if there is a certificate—*
 - (a) the period for which the certificate is current, and*
 - (b) that a copy may be obtained from the Department.*
- (2) If State Environmental Planning Policy (Housing) 2021, Chapter 2, Part 2, Division 1 or 5 applies to the land, any conditions of a development consent in relation to the land that are of a kind referred to in that Policy, clause 21(1) or 40(1).*
- (3) Any conditions of a development consent in relation to land that are of a kind referred to in State Environmental Planning Policy (Affordable Rental Housing) 2009, clause 17(1) or 38(1).*
- (4) In this section— former site compatibility certificate means a site compatibility certificate issued under State Environmental Planning Policy (Affordable Rental Housing) 2009.*

The land IS NOT subject to a current or former site compatibility certificate (of which the council is aware) for affordable rental housing.

23 Water or sewerage services

If water or sewerage services are, or are to be, provided to the land under the Water Industry Competition Act 2006, a statement to that effect.

Note: A public water utility may not be the provider of some or all of the services to the land. If a water or sewerage service is provided to the land by a licensee under the Water Industry Competition Act 2006, a contract for the service will be deemed to have been entered into between the licensee and the owner of the land. A register relating to approvals and licences necessary for the provision of water or sewerage services under the Water Industry Competition Act 2006 is maintained by the Independent Pricing and Regulatory Tribunal and provides information about the areas serviced, or to be serviced, under that Act. Purchasers should check the register to understand who will service the property. Outstanding charges for water or sewerage services provided under the Water Industry Competition Act 2006 become the responsibility of the purchaser.

Not applicable.

24 Special entertainment precincts



Whether the land or part of the land is in a special entertainment precinct within the meaning of the Local Government Act 1993, section 202B.

Not applicable.



Contaminated Land Management Act 1997

Note. The following matters are prescribed by section 59 (2) of the [Contaminated Land Management Act 1997](#) as additional matters to be specified in a planning certificate:

(a) that the land to which the certificate relates is significantly contaminated land within the meaning of that Act—if the land (or part of the land) is significantly contaminated land at the date when the certificate is issued,

The land IS NOT significantly contaminated land within the meaning of the Contaminated Land Management Act 1997.

(b) that the land to which the certificate relates is subject to a management order within the meaning of that Act—if it is subject to such an order at the date when the certificate is issued,

The land IS NOT subject to a management order within the meaning of the Contaminated Land Management Act 1997.

(c) that the land to which the certificate relates is the subject of an approved voluntary management proposal within the meaning of that Act—if it is the subject of such an approved proposal at the date when the certificate is issued,

The land IS NOT the subject of an approved voluntary management proposal within the meaning of the Contaminated Land Management Act 1997.

(d) that the land to which the certificate relates is subject to an ongoing maintenance order within the meaning of that Act—if it is subject to such an order at the date when the certificate is issued,

The land IS NOT the subject to an ongoing maintenance order within the meaning of the Contaminated Land Management Act 1997.

(e) that the land to which the certificate relates is the subject of a site audit statement within the meaning of that Act—if a copy of such a statement has been provided at any time to the local authority issuing the certificate,

Council HAS NOT received a copy of a site audit statement, within the meaning of the Contaminated Land Management Act 1997, for this land.

Note. Section 53B requires site auditors to furnish local authorities with copies of site audit statements relating to site audits for the purposes of statutory requirements.

Stella Agagiotis
Manager Strategic Planning
1300 722 542

Date:02-Dec-2025



NOTE:

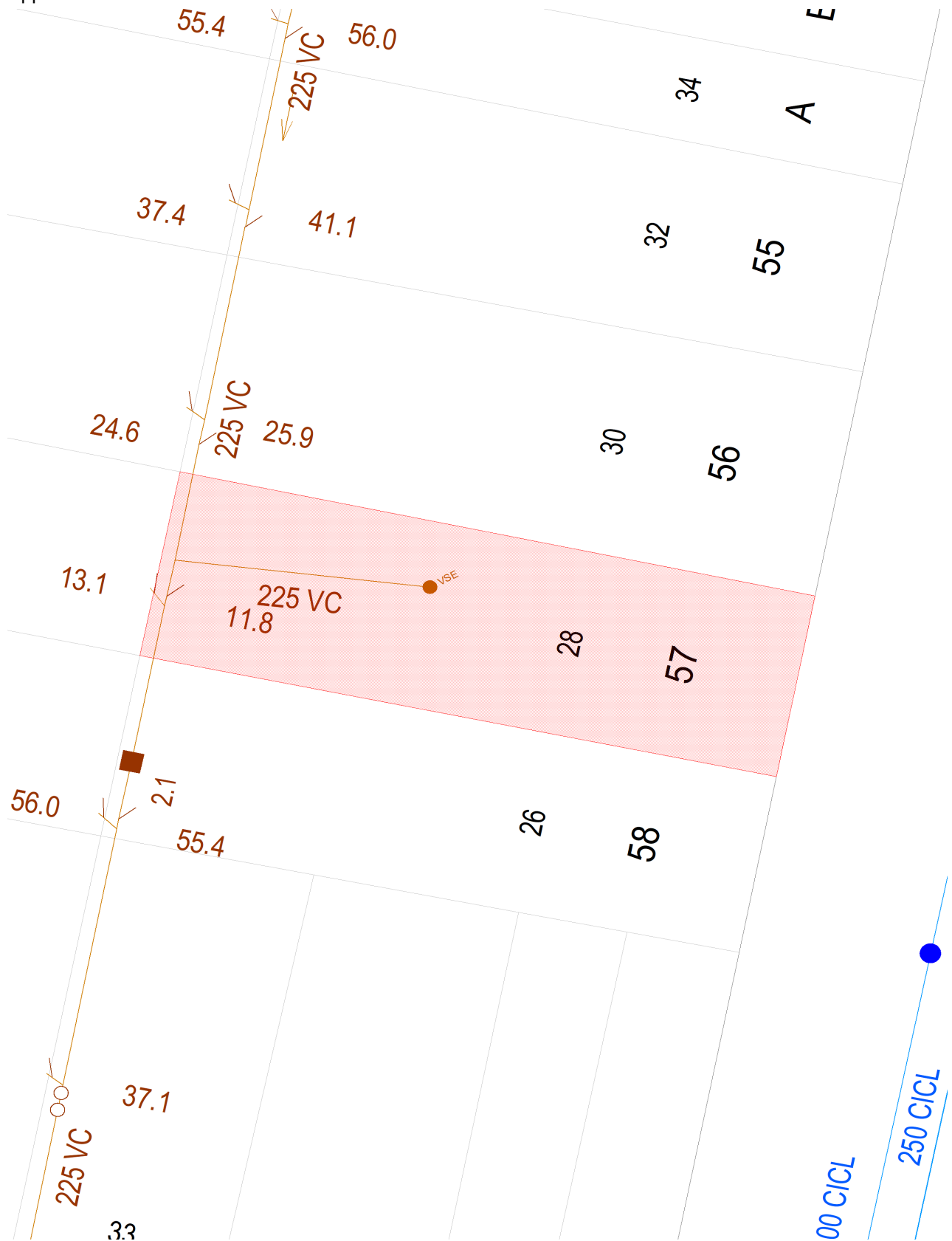
Section 10.7(5) Matters:

You may also wish to obtain advice on additional relevant matters affecting the land, under section 10.7(5) of the Environmental Planning and Assessment Act 1979. This advice relates to the following matters:

- Council resolutions to prepare draft local Environmental Plans.
- Terrestrial Biodiversity
- Foreshore Scenic Protection Areas
- Ground Water extraction embargo or water shortage area
- Ground water investigations of 128 Barker St. Randwick (Service Station)
- Flood Studies
- Resident Parking Schemes

Service Location Print

Application Number: 8003940480



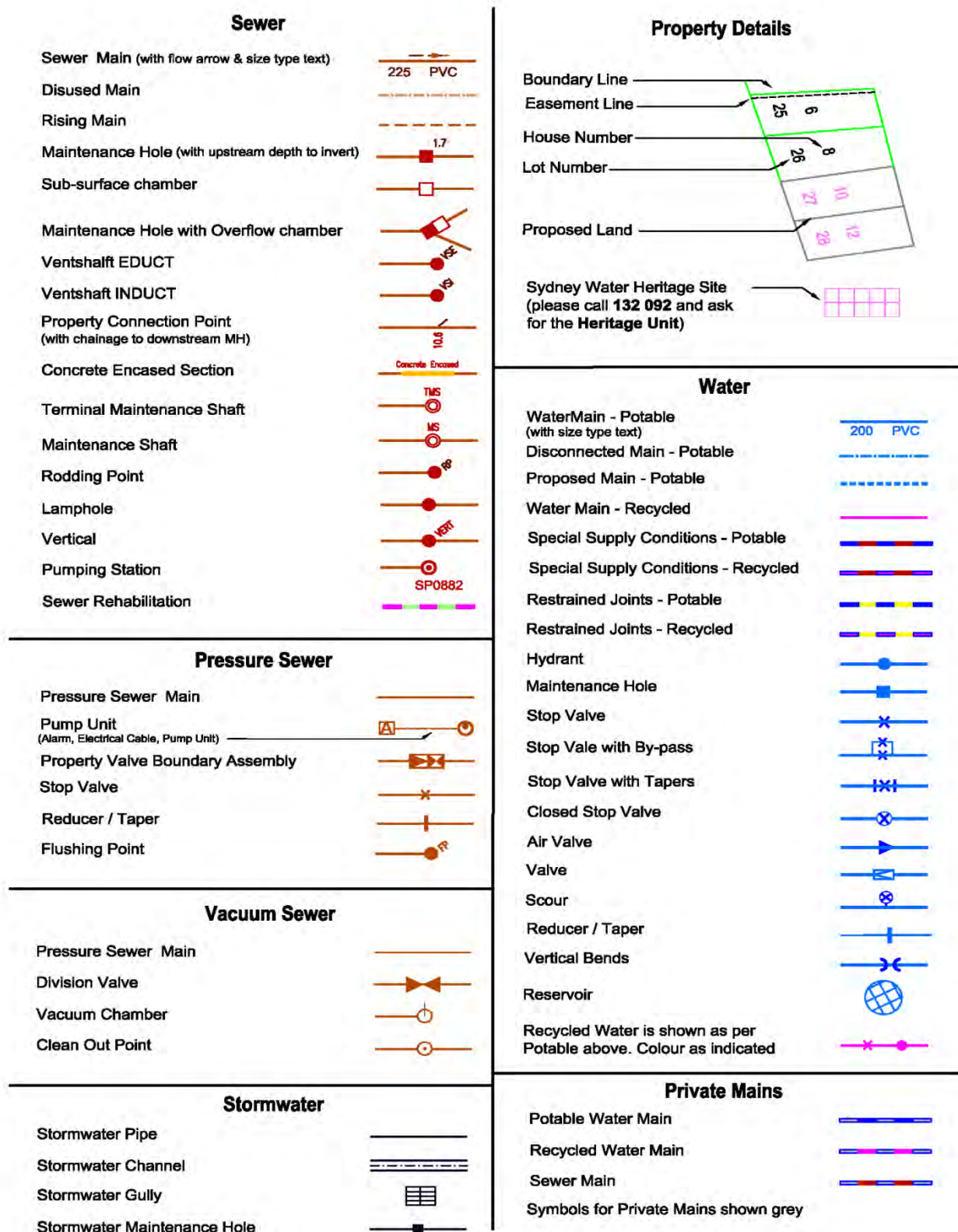
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Disclaimer

The information on this print shows if we provide any water, wastewater or stormwater services to this property. It may not be accurate or to scale. If you'd like to see the location of private wastewater pipes on the property, please buy a **Sewer service diagram**.

Asset Information

Legend



Disclaimer

The information on this print shows if we provide any water, wastewater or stormwater services to this property. It may not be accurate or to scale. If you'd like to see the location of private wastewater pipes on the property, please buy a **Sewer service diagram**.

Pipe Types

ABS	Acrylonitrile Butadiene Styrene	AC	Asbestos Cement
BRICK	Brick	CI	Cast Iron
CICL	Cast Iron Cement Lined	CONC	Concrete
COPPER	Copper	DI	Ductile Iron
DICL	Ductile Iron Cement (mortar) Lined	DIPL	Ductile Iron Polymeric Lined
EW	Earthenware	FIBG	Fibreglass
FL BAR	Forged Locking Bar	GI	Galvanised Iron
GRP	Glass Reinforced Plastics	HDPE	High Density Polyethylene
MS	Mild Steel	MSCL	Mild Steel Cement Lined
PE	Polyethylene	PC	Polymer Concrete
PP	Polypropylene	PVC	Polyvinylchloride
PVC - M	Polyvinylchloride, Modified	PVC - O	Polyvinylchloride, Oriented
PVC - U	Polyvinylchloride, Unplasticised	RC	Reinforced Concrete
RC-PL	Reinforced Concrete Plastics Lined	S	Steel
SCL	Steel Cement (mortar) Lined	SCL IBL	Steel Cement Lined Internal Bitumen Lined
SGW	Salt Glazed Ware	SPL	Steel Polymeric Lined
SS	Stainless Steel	STONE	Stone
VC	Vitrified Clay	WI	Wrought Iron
WS	Woodstave		

Further Information

Please consult the Dial Before You Dig enquiries page on the Sydney Water website.

For general enquiries please call the Customer Contact Centre on 132 092

In an emergency, or to notify Sydney Water of damage or threats to its structures, call 13 20 90 (24 hours, 7 days)

Disclaimer

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Sewer Service Diagram

Application Number: 8003940449

METROPOLITAN WATER SEWERAGE AND DRAINAGE BOARD
DIAGRAM OF SANITARY DRAINAGE
Municipality of *RANDWICK* SEWER AVAILABLE Diagram No. *248/06*

SYMBOLS AND ABBREVIATIONS			
□ Boundary Trap	RV. Reflux Valve	I.P. Induct Pipe	Bsn. Basin
■ Pit	CE. Cleaning Eye	M.F. Mica Flap	Shr. Shower
■ Grease Interceptor	VERT. Vertical Pipe	T. Tubs	W.I.P. Wrought Iron Pipe
■ Gully	V.P. Vent. Pipe	K.S. Kitchen Sink	C.I.P. Cast Iron Pipe
■ P.T. P. Trap	S.V.P. Soil Vent. Pipe	W.C. Water Closet	F.W. Floor Waste
■ RS Reflux Sink	D.C.C. Down Cast Cowl	B.W. Bath Waste	W.M. Washing Machine

Existing drainage shown by black lines Scale: 40 Feet to an inch

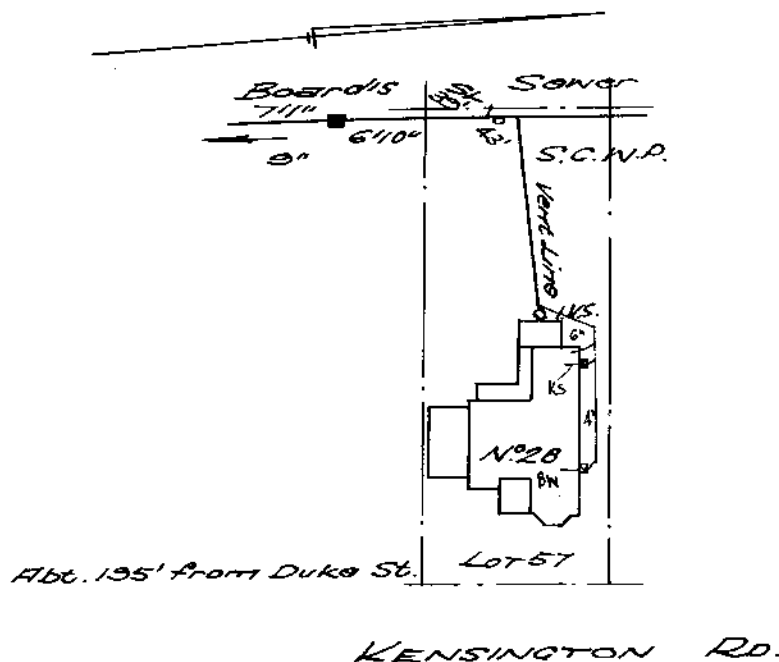
Proposed new drainage shown by full blue lines.

This diagram is the property of the Owner and is to be returned to him on completion of the work.

Subject to application, certificates for drainage and sanitary plumbing will be issued to the owner when the work is completed and passed by the Board's Inspector.

~~The Board accepts no responsibility for the suitability of the diagram in relation to the eventual position of the Board's sewer. When the sewer becomes available it will be necessary to apply for a revised diagram.~~

This work must be carried out in accordance with the Board's By-laws.



SHEET No. *2843*

19

FOR ENGINEER-IN-CHIEF

OFFICE USE ONLY			
W.C.	Designed by	DATE	Inspector
Bth	Inspector		
Shr	Examined by	Date	Inspector
Bsn	Chief Inspector	Outfall	Checked
K.S		Drainer	COMPENSATION - MH. AC. VS.
T		Boundary Trap	File
Pig		required.	HOV
Dge. Int.	DESIGN		
Dge. Ext.			

3266PH

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Disclaimer

The information in this diagram shows the private wastewater pipes on this property. It may not be accurate or to scale and may not show our pipes, structures or all property boundaries. If you'd like to see these, please buy a **Service location print**.

Special Conditions

Schedule 4 - Guarantee and Indemnity

1 Guarantee

In consideration of the vendor entering into this contract at the request of the Guarantor, the Guarantor:

- (a) unconditionally and irrevocably guarantee the punctual payment to the vendor of all moneys payable by the purchaser to the vendor under this contract;
- (b) must, on demand, immediately pay to the vendor any amount payable by the purchaser to the vendor under this contract which is not paid by the purchaser on its due date; and
- (c) must, on demand by the vendor, promptly perform all of the obligations of the purchaser under this contract which the purchaser has not performed, whether or not the vendor has demanded performance by the purchaser.

2 Indemnity

The Guarantor unconditionally and irrevocably indemnify the vendor for any claim against the vendor or any liability incurred by the vendor, directly or indirectly, if for any reason:

- (a) the purchaser does not promptly perform all of the obligations of the purchaser under this contract;
- (b) the purchaser exceeds its power in entering into this contract; or
- (c) the purchaser is subject to an Insolvency Event.

3 Guarantor to remain liable

The Guarantor remain separately liable under this guarantee and indemnity if:

- (a) the purchaser:
 - (i) enters into any composition or scheme or deed of arrangement with creditors; or
 - (ii) enters into administration or liquidation or is de-registered, dissolved or wound-up;
- (b) the vendor cannot for any reason enforce this contract or any part of it against the purchaser;
- (c) the vendor for any reason has not exercised or does not exercise all or any one or more of the vendor's rights or powers:
- (d) the vendor grants any time or other indulgence or concession to the purchaser;
- (e) the vendor compounds, compromises, releases, abandons, waives, varies, relinquishes or renews any of the vendor's rights against the purchaser, or waives

or varies or amends any provision of this contract, despite the liability of the Guarantor being increased;

- (f) any part of the purchaser's liability to the vendor is satisfied by a payment that, whether because it is a preference or for any other reason, the vendor must pay back or otherwise lose the benefit of, to the extent of the repayment or benefit so lost; or
- (g) any other Guarantor is no longer bound by the guarantee and indemnity in clauses 1 and 2.

4 No claims

Until the vendor has received all moneys payable by the purchaser to the vendor under this contract:

- (a) the Guarantor are not entitled to prove in the liquidation or estate, as the case may be, of the purchaser in competition with the vendor; and
- (b) the Guarantor are not entitled to claim the benefit of any security that the vendor may hold.

5 Acknowledgment

The Guarantor each separately acknowledge and agree that:

- (a) it is a condition of the vendor entering into this contract that each Guarantor gives the guarantee and indemnity in clauses 1 and 2;
- (b) he or she has received valuable consideration for giving the guarantee and indemnity in clauses 1 and 2;
- (c) he or she has not been induced to enter into this guarantee and indemnity because of any representation by or on behalf of the purchaser or the vendor; and
- (d) he or she has received legal advice or has had the opportunity to obtain legal advice in relation to the guarantee and indemnity in clauses 1 and 2.

6. Insolvency Event

In this Schedule 4, **Insolvency Event** means:

- (e) in relation to a body corporate:
 - (i) an application being made to a court for an order that it be wound up;
 - (ii) an application being made to a court for an order appointing a liquidator or provisional liquidator in respect of it, or one of them is appointed, whether or not under an order;
 - (iii) except to reconstruct or amalgamate while solvent on terms approved by the vendor, it enters into, or resolves to enter into, a scheme of arrangement, deed of company arrangement, or composition with, or assignment for the benefit of, all or any class of its creditors, or it proposes a reorganisation, moratorium or other administration involving any of them;

-
- (iv) it resolves to wind itself up, or otherwise dissolve itself, or gives notice of intention to do so, except to reconstruct or amalgamate while solvent on terms approved by the vendor, or is otherwise wound up or dissolved;
 - (v) it is or states that it is insolvent;
 - (vi) as a result of the operation of section 496(1) of the *Corporations Act 2001* (Cth), it is taken to have failed to comply with a statutory demand;
 - (vii) it is, or makes a statement from which it may be reasonably deduced by the vendor that it is, the subject of an event described in section 459C(2) or section 585 of the *Corporations Act 2001* (Cth);
 - (viii) it takes any step to obtain protection or is granted protection from its creditors under any applicable legislation; or
 - (ix) anything having a substantially similar effect to any of the events set out above happens under the law of any applicable jurisdiction.